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Virginia Board of Education, Business Meeting, Thursday, September 26, 2024

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- Official meeting video (VDOE, YouTube): https://www.youtube.com/watch?v=9A1nbQAOMr4
- Board of Education meetings, agendas and minutes (VDOE): https://www.doe.virginia.gov/state-board-data-funding/virginia-board-of-education

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-23. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:06:53] good morning it's nine o'clock and so we will get started and i'd like to call this meeting to order um i'll note that i have approved the remote participation of mrs kilgore under the board bylaws in section 2.2-3708.3 b3 of the code of virginia because her principal residence is more than 60 miles from the meeting location as is customary for this board we will begin our meeting

[00:07:19] with a moment of silence followed by the pledge of allegiance so join me please thank you i pledge allegiance to the flag of the United States of America, and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:08:06] Our first item is to approve the agenda. Is there a motion to approve the agenda as presented for us today? Is there a second? Second. Dr. Northern, vote A or nay?

[00:08:26] Aye. Mrs. McPherson? Aye. Dr. Bryce? Aye. Ms. Kilgore, if you're on. Ms. Ashton? Aye. Ms. Holton? Aye. And the chair votes aye.

[00:08:53] Staff has provided the members of the board with the minutes before the meeting. Is there a motion to approve the minutes as presented to the board? So moved. I heard a move and a second. Dr. Northern? Ms. McPherson? Aye. Dr. Bryce? Aye.

[00:09:14] Mrs. Ashton? Aye. Ms. Holton? Aye. Mrs. Kilgore? Aye. And the chair votes aye. Minutes are approved. Well, it's my honor and privilege of this morning, as customary, we get to hear and learn and benefit from the students of the Commonwealth.

[00:09:38] And this morning, the Richmond Public School Dogwood Middle School Dance Company is a student group that was established in 2016. Company members study ballet, modern, jazz, improvisation, and composition within the Dogwood Dance program.

[00:09:57] The company has performed throughout the community, including the 2019 Superintendent's State of the School's Address, Generation Dream, the Richmond Public Schools Fine Arts Festival, the Strawberry Street Festival, the Appomattox Regional Governor's School for the Arts and Technology, the Petersburg Home for Ladies, and Cedarfield Retirement Community.

[00:10:19] The company has also had the opportunity to perform in the music videos, Have It All and Love is Still the Answer by Jason Mraz. The dance company inspires students to find their own voice through performance and choreography while learning valuable skills in the rehearsal process, including collaboration, respect, and confidence.

[00:10:38] So if you'll join me in welcoming. Are they outside? I'm right back here. I would actually maybe encourage the board to maybe stand up over here so we will get out of their way and be able to watch them.

[00:11:10] Well, thank you. And just as a father of four daughters and six granddaughters, all who are dancers, and do a lot of recitals for my granddaughters recently.

[00:15:34] So this is wonderful and very beautiful, talented young women. Well, we also have the privilege of receiving the Presidential Award for Excellence in Mathematics and Science and Teaching.

[00:15:50] And I'll turn to Dr. Bryce to introduce our award recipients today. It is truly my honor to announce these finalists. The Virginia Board of Education is pleased to recognize three elementary mathematics and science teachers as the 2024 state-level finalists for the Presidential Awards for Excellence in Mathematics and Science Teaching.

[00:16:09] The PAMPS program, established in 1983, is administered by the National Science Foundation on behalf of the White House Office of Science and Technology. The Presidential Awards for Excellence in Mathematics and Science Teaching are the highest honors bestowed by the United States Government specifically for K-12 science, technology, engineering, mathematics, and/or computer science teaching.

[00:16:32] The program identifies outstanding teachers from each of the 50 states and the four United States jurisdictions. The award recognizes those teachers who have both deep content knowledge of the subjects they teach and the ability to motivate and enable students to be successful in those areas.

[00:16:47] The awards alternate each year between elementary teachers in kindergarten through grade 6 and secondary teachers in grades 7 through 12. The PAMPS awardees serve as models for their colleagues and are leaders in the improvement of STEM education. We are honored to recognize the following teachers as the 2024 PAMPS state-level finalists for the Commonwealth of Virginia.

[00:17:08] The mathematics finalist is Elizabeth Lynch. She is a STEM teacher at Patrick Henry Elementary School in Martinsville City Schools. In her position, Ms. Lynch works with all 22 classes of students in kindergarten through grade five to provide a STEM-based education that relies heavily on

practical application of mathematics, thus helping students find success in related subjects like science and technology.

[00:17:31] Additionally, Ms. Lynch has spearheaded numerous initiatives to improve student outcomes in mathematics and science. She established a tutoring program for students struggling with mathematics, and she is an active leader in many after-school STEM and engineering programs. In fact, the robotics team has won awards at the state, national, and international levels, including earning an international title in FIRST Global Innovation.

[00:17:54] The school's principal, Mrs. Kamen Cooper, shares that Ms. Lynch embodies exceptional leadership, dedication, and passion for excellence in math education.

[00:18:10] Her instructional leadership and advocacy for math have made a significant positive impact on students, teachers, and the broader community. Her goal is to strengthen students' relationships with the school and fuel their passions. Ms. Lynch has been awarded many accolades, including Teacher of the Year, Technology Teacher of the Year, and various awards for her contributions to growing STEM programs.

[00:18:31] However, she states that the highest honor she has received was being invited to a celebratory breakfast for graduating high school seniors, three of whom recognized Ms. Lynch as their most influential teacher. All three female students are planning to pursue STEM degrees in college. Ms. Lynch states that the idea that I have the slightest impact on these young ladies becoming articulate, hardworking students is the greatest honor I will ever receive.

[00:18:57] Our science finalists are Jennifer Gates, who is a fifth grade teacher at Randolph Elementary School in Goochland County Public Schools. In addition to teaching science, Mrs. Gates teaches all core subjects and is the gifted collaborative teacher. Ms. Gates is a master of cross-curricular instruction, crafting student experiences that integrate content areas.

[00:19:17] In 2023, she led her class in founding Youth United, a non-profit that connected students with the Goochland community, focusing on environmental, animal, and human welfare. Her students gained real-life experience by interviewing for non-profit positions and raising thousands of dollars for local organizations.

[00:19:35] Currently, Ms. Gates and her students are building a school nature center, integrating math and critical thinking. She excels at fostering a nurturing classroom environment, prioritizing her students' well-being, and is an active member of the Impact Team, a group of educators that come together to scale up their expertise in a number of instructional areas. The school's principal, Ms. Reams, states that Ms. Gates excels in creating a supportive and nurturing environment. She genuinely cares about each and every one of her kids and goes above and beyond to ensure their well-being and academic success. She understands the importance of building meaningful relationships with her students and she

[00:20:11] prides herself on creating a classroom community that fosters collaboration, creativity, and respect. Her dedication to her students' growth and development is truly remarkable. Next for science finalists is Dr. Lori Sullivan. She is a distinguished educator with over 30 years of teaching children and advancing science education within Arlington Public Schools. She is currently the Project Discovery Science slash STEM slash STEAM teacher at K.W. Barrett Elementary School.

[00:20:41] In this role, she teaches students in pre-kindergarten, kindergarten, and first, second, and fourth grades. Dr. Sullivan also teaches special needs students that include functional life skills and the multi-intervention program for students with autism. Arlington Science Supervisor Dot Lee states that Dr. Sullivan has significantly contributed to curriculum development, integrating technology, environmental initiatives, and NASA-related resources into her teaching.

[00:21:08] Dr. Sullivan is recognized for her ability to connect students with STEM careers and professionals, fostering relationships that extend beyond the classroom. Notably, she has facilitated student involvement in national initiatives, such as NASA's "Name the Mars Rover" contest, resulting in a Barrett student becoming a finalist.

[00:21:27] Dr. Sullivan's leadership extends beyond her classroom, having led professional learning at school, district, and national levels, and contributed to district STEM initiatives and events. Her passion for science education reflected in numerous awards and recognitions, continues to inspire students and educators alike.

[00:21:45] The school's principal, Catherine Hahn, states, What truly sets Dr. Sullivan apart is her innate capacity to understand and adapt to the diverse needs of students. Whether working with high-achieving individuals or those facing challenges, she tailors her approach to ensure that every student feel seen, heard, and encouraged to reach their full potential.

[00:22:06] This personalized approach has not only led to improved academic outcomes, but has also fostered a sense of trust and rapport among her students. The National Science Foundation oversees the selection of the state-level awardees on behalf of the White House. We anxiously await hearing who among these great educators will be recognized as the 2024 State Awardee for the Commonwealth of Virginia.

[00:22:28] Please join me in congratulating these amazing educators.

[00:22:32] Thank you. And we'll now move on to our closed session, which we hope to keep brief.

[00:25:47] And Mrs. Ashton, would you make our motion to go into closed session? Sure, Mr. Vice President. I move that the Virginia Board of Education convene in closed session for the following purposes. Discussion or consideration by the Board of Education of information relating to the denial, suspension, or revocation of teacher licenses subject to the exclusion in subdivision 11 of section 2.2.3705.2 pursuant to section 2.2.3711A40 of the Code of Virginia

[00:26:22] in consultation with counsel regarding specific legal matters requiring the provision of legal advice pursuant to section 2.2.3711A8 of the Code of Virginia and that legal counsel to the Virginia Board of Education and Staff whose presence will aid in the board's consideration of these matters participate in closed session.

[00:26:46] Thank you. Motion has been made by Mrs. Ashton. Is there a second? Second. Thank you. Dr. Northern? Mrs. McDiarson? Aye. Dr. Bryce? Aye. Mrs. Ashton? Aye. Ms. Holton?

[00:27:03] Mrs. Kilgore? And the chair votes aye. We will now go into executive session.

[01:39:23] We'll turn it over to Ms. Ashton to bring us back.

[02:51:38] Hello. Today we convened in close meeting pursuant to a recorded vote on the motion above in accordance with the Virginia Freedom of Information Act, Section 2.23712 of the Code of Virginia, which requires that the board certify that, to the best of each member's knowledge,

[02:52:02] One, only public business matters lawfully exempt from open meeting requirements under this chapter, and two, only such public business matters as were identified in the motion by which the closed meeting was convened were heard, discussed, or considered.

[02:52:19] Any member who believes that there was a departure from these requirements shall so state prior to the vote, indicating the substance of the departure that, in his or her judgment, has taken place. The statement of the departure will be recorded into the minutes.

[02:52:34] I move to certify the purpose of the closed meeting. A motion has been made by Mrs. Ashton. Is there a second? Second. Thank you. So we'll take a vote. Dr. Bryce?

[02:52:52] Aye. Ms. Kilgore? Is she on? Not yet. Mrs. Ashton? Aye. Dr. Northern? Aye. Ms. McPherson? Aye. Ms. Holton? Yes. The chair will vote aye.

[02:53:07] We are back in session. The next item of business is to vote on a series of licensure matters that have been under review by the Board of Education during an executive session. These will be roll call votes.

[02:53:24] All those who vote in favor signify by saying aye and those opposed by saying no. In case number 2024-014, the chair will entertain a motion to reinstate the teaching license to the applicant.

[02:53:42] So moved. Is there a second? Second. We will take a vote. Dr. Price. Aye. Ms. Kilgore? Mrs. Ashton? Aye.

[02:53:58] Dr. Northern? Nay. Mrs. McPherson? Nay. Ms. Holton? I'm sorry, I missed which case one. The first one. The first one. Yes. And the chair will vote yes. So the vote is 5 to 2.

[02:54:17] In case number 2024-017, the chair will entertain a motion to suspend the license of Anthony Tone Min Lei for three years with reinstatement contingent upon the respondent satisfying the following conditions evaluation by a certified mental health professional documenting respondents readiness to return to the classroom and evidence of satisfactory completion of additional training in the areas of ethics professionalism and maintaining appropriate boundaries with students and this is also stipulated that there will be an appearance before

[02:54:56] the board at the three-year time period. Is there a motion? So moved. Is there a second? Second. We'll take a vote. Dr. Bryce? Aye. Ms. Kilgore? Aye. Ms. Ashton? Aye. Dr. Northern? Nay.

[02:55:16] Mrs. McPherson? Nay. Ms. Holton? Aye. And the chair will vote aye. So the vote is five to two.

[02:55:26] We will move to our public comment section, and I just want to apologize to everybody who has patiently waited during these licensing considerations of the board and having the one-day meeting kind of messed our cadence up a little bit, so my apologies to all of you who have been so patient and waiting so long.

[02:56:10] Just before we open it up for public comment, I want to share a few comments about the manner in which public comment will be conducted. I ask that you model professionalism, dignity, and respect for others as you share your thoughts today. As adults, it is important that we model respectful civil public discourse for our students and the children who are either in attendance today or viewing this stream now or in the future.

[02:56:33] When you begin, please provide your name, your role, or affiliation at where you live in Virginia. All remarks must be directed to the chair, not to any other individual. Speakers will have three minutes to share their remarks, and you'll notice the timer on the screens, and we'll begin with the three minutes in green.

[02:56:49] One minute, the screen will turn yellow, and the screen will turn red when the time is up. At that point, we ask you to please close your comments promptly. Speakers may provide copies of their comments to Mr. Joe Crook, the department's regulatory and board coordinator. Joe, will you raise your hand? There you are, sir.

[02:57:07] All written comments received during public comment will be collected and provided to the board as soon as possible after public comment. You may also email a copy of your remarks to the board at boe.doe.virginia.gov, and we will move into public comment.

[02:57:25] And we have a list of those who have signed up, and I think we'll do that at the end. Our first participant will be Scott Fleming, and after Scott will be, I hope I get his name right, So I apologize if I butchered that.

[02:57:52] Okay. And we have Scott up to here. I just would personally like to welcome Scott and his new role at the state. And thank you for being with us today, Scott. Thank you, Mr. Vice President.

[02:58:07] And board members, also thank you to the teachers, administrators, education leaders in the Commonwealth of Virginia, and parents of students in our public education system. My name is Scott Fleming. I'm the director of the State Council of Higher Education for Virginia. I am a father to four, two of which are still in the Hanover County Public Schools.

[02:58:25] All four of my children are either product or enrolled in Virginia's public education system. I stand here representing SHEV, although the council has not made any formal position known on the issue of the standards of accreditation or recent changes. I stand in support of increased focus on elevating the standard of success, promoting high expectations, and ensuring fair and transparent outcomes for all of our students.

[02:58:50] In Virginia, our public higher education system relies on our public two-year institutions to provide remedial or developmental courses. And when looking at the statistics, recently, first-time college enrollment for those freshmen who are first attending a public two-year institution, enrollment overall increased by 4.8% from the 21-22 to the 22-23 school year.

[02:59:11] At the same time, the number of students enrolled in remedial or developmental courses grew by 12.1% over that same period, so almost two and a half times as quickly. Over the three-year period ending June 30, 2023, total enrollment of public institutions rose by 3%, while enrollment in remedial or developmental education grew by 8%.

[02:59:28] Currently, over 25% of first-time public two-year students enroll in remedial courses. That's one in four students who will start their college experience from behind. Consistent with national trends, Virginia students enrolling in remedial courses disproportionately tend to be low-income, minority, and from other underrepresented communities.

[02:59:46] They also tend to graduate at lower rates than their peers, take longer to graduate when they do complete their program of study and generally experience much more hardship than their more

affluent peers. The picture is worsening. Many of our Virginia students are arriving at college without the necessary academic preparation to succeed. We can and we should do better for our students. Ensuring that all Virginia students are prepared for post-secondary education or any other activity they decide to pursue after high school is a fundamental obligation of the state's commitment to our public education system. While not every student will pursue a post-secondary credential, we must assume the obligation to give every student the opportunity to pursue post-secondary education so students who choose that path can enter college prepared for the demands of a college

[03:00:23] experience. Transparency, support, and high expectations will help all of Virginia's students succeed. Thank you. Vice President Hanson and the board. Thank you, Mr. Fleming. Next two up will be Minister Cheryl Sims and Todd Pruitt. Good morning. No, I guess it's afternoon now. My name is Jen Savini and I live in Burke, Virginia, which is in Fairfax County. My daughter is a special education teacher in the Fairfax County public schools. My daughters went to Fairfax County

[03:01:02] elementary schools. My grandsons graduated, went to elementary and high school in Fairfax County. And I strongly oppose this blatantly political attempt to declare our public schools as failures.

[03:01:19] That is not the charge you have received from the taxpayers of this Commonwealth. You should be doing everything possible to support our dedicated but underpaid teachers, our administrators, and staff in their mission to educate the students who are the future of our country.

[03:01:39] Instead, you are imposing time-consuming, unfunded mandates which will be detrimental to the education our students need and to which they are entitled. Your effort to, in fact, weaken our public education system so that it can be privatized is shameful.

[03:02:02] Thank you. Cheryl Sims here. We'll have Todd, and after Todd would be Dan Zacharias. Good morning, members of the board and Superintendent Coons. I'm here today as a parent of two Arlington Public School students.

[03:02:23] For the press, I want to clear up some of the misinformation on English language learners. The reporting is often repeated allegations that the new system nefariously targets ELs by including them after one year of entering school in the U.S. Fairfax had a school board work session in August where a school board member almost started to cry over the supposed targeting.

[03:02:43] We had protesters at the last meeting on this issue. Let's go through the facts. One, newly arrived ELs have been required by federal law to take standardized tests since 2002 as part of No Child Left Behind. Two, they have been included in accountability by federal law with a one-year exemption since 2002.

[03:03:02] Three, civil rights groups strenuously advocated and still advocate for ELs to be included in testing and accountability after one year, including summative ratings. Four, conversely, the Virginia state law accreditation system's unique metrics used a very long 5.5-year carve-out for ELs.

[03:03:23] Notably, the new accountability system is already causing Virginia school districts to finally comply with these long-standing federal protections. At a school board meeting last week, one of the largest Virginia school districts' chief academic officer said the new accountability system has resulted in the district to now have a, quote, laser-like focus on ELs.

[03:03:45] and this newfound laser-like focus is even more notable considering ELs are approximately 25 percent of that student body, and this district had a settlement in 2019 with the U.S. Department of Justice over allegations it provided inadequate help to ELs. In addition, thank you board for acting now. Although Virginia schools do need additional funding, this board can't appropriate funds and parents shouldn't have to wait any longer, especially those communities with many ELs.

[03:04:13] I'd also ask that Virginia start from scratch in designing the data reporting system for the new accountability system. As the Education Trust states, a key equity issue is having an accountability reporting system that is understandable, easily accessible, and widely available. I live three miles from Maryland and the difference between their clear school report card of federal data and Virginia's misleading system makes the Potomac River seem like the Atlantic Ocean.

[03:04:39] Virginia school profiles, the significantly less rigorous state reporting metrics are front and center, while the stricter federal data is buried in confusing tabs with fuzzy formats, like with ELs. The civil rights group, the National Urban League, gave the old system its lowest rating in their equity scorecard, stating it provides, quote, nothing in terms of format or usability with the end user in mind, end quote. Speaking as a former securities lawyer, no Virginia public company would ever get away legally with such smoke and mirrors with its federal disclosure requirements.

[03:05:10] Please make this inequity stop happening with data publicly reported on Virginia's public schools. Thank you. Dan Zacharias. After Dan, Tammy Shea would be next. Good morning. I think it is still morning, members of the board. Barely. Thank you for your time. I'm going to try to summarize as quickly as possible the comments that are being handed to you. I'm Dan Zacharias, Director of the Old Dominion Association of Church Schools. I come to you from time to time on behalf of our

[03:05:49] organization. As you know, Virginia has embarked on a bold new early childhood initiative overseen by the Department of Ed, and we certainly acknowledge there's a great need, but we have some serious concerns about the way the policy has been drawn up and is being implemented. First of all, let me pose an absurd hypothetical to you. Imagine private and church-run K-12 schools being subsidized, sometimes tens of thousands of dollars, directly by the Department

[03:06:28] of Ed in exchange for aligning their curricula with the standards of learning. Now that's something that's never been contemplated. I think both public and private education sectors are comfortable with a clear division on the SOLs and in funding. And so I hope that proposal would sound absurd to you, but that is exactly what we're doing with K4 and K3. So what doesn't make sense for five and six-year-olds somehow makes perfect sense for four and three-year-olds. And we see some dangers in that. I have some other comments in there to that effect. Secondly,

[03:07:06] we're experiencing increased overreach. Our church-run preschools and daycares operate with religious exemption they are subject to DOE inspection and those inspections are becoming very much more aggressive and we feel like instances of overreach are increasing we had an instance a year ago where a DOE inspector threatened to shut down a summer day camp at one of our churches thankfully after a couple weeks standoff that matter was resolved in a positive way but we've been on high alert since then and then the last the third point and you'll see in the

[03:07:45] comments as the issue of safety. I addressed you a couple of months ago about that. We believe that data demonstrates that our religiously exempt child care centers are the safest, and so there's comments in that, and I won't, I'll let you look at that at your leisure, and I thank you for your time very

much and for considering our concerns. Tammy, and after Tammy would be Robin Thompson, and then Dr. Lucas. Hello, everyone. So I was going to say that everyone might want to make

[03:08:22] sure that you record your speech so that you can post on social media because pow tan county most recently their school board me and another person got muted our comments so um yeah i'm definitely tracing and you know posting publicly because everyone needs to know what someone has to say so um why are y'all not holding school districts accountable for not following guidelines in regards to attendance. When it comes to students with disabilities that has IEPs, they're not

[03:08:57] following the IDEA. Instead, they're doing the normal 10 days as they would for regular students. Then they will file a false chance or truancy charges or anything they can against the parents and God forbid the school win, then the it's the school to prison pipeline for that child with disabilities, which is, I guess, you know, a lot of y'all don't care, which is, you know, what they want. They want complete control. And, you know, y'all are backing them. Simply not all

[03:09:37] y'all has what it takes to stop it. You know, at last month, I begged our board of supervisors to please be good stewards of the money for Powten County. There's been no changes yet. I requested them to ask for an invoice for every penny that that school board needs especially about how they spent over fifty thousand dollars for my son right there in legal fees instead of paying thirteen hundred dollars to pen foster for him to go to that online program so and i'm expecting to be

[03:10:14] reimbursed for that um also i feel if y'all truly cared about virginia special needs families y'all would make sure that these purple the purple bible that sits in the closet i i feel like it should be at every rest stop public library community centers pediatrician's office any public entity in virginia and not just sitting in a closet these parents need to know what their

[03:10:44] rights are and what their child deserves and i'm done robin here dr lucas and after dr lucas So we'll have Kathy Halverson to use the podium.

[03:11:09] Good afternoon. My name is Candace. My name is Dr. Candace Lucas, and today I bought a skull because this skull represents special education in Virginia, how our children are facing academic malnutrition, and there's a famine going on.

[03:11:33] We keep hearing that special education in Virginia is broken, and I'm thinking that maybe the board needs an IEP or a behavior intervention plan because you keep doing the same interfering behaviors and hire the same individuals and expect a different outcome for our children.

[03:11:57] Ms. C. referenced the purple book. I was drilled four hours on this law in order to get my doctorate. I've never seen so many people violate the civil rights law with impunity for profit.

[03:12:13] We talk about student trafficking. I want to talk about special education student trafficking, where the blood of our children is on your hands. I just got off the phone with the school division in Powhatan and they hung up on the family whose mother passed away.

[03:12:29] The child just survived the mother passing away. They unenrolled the child from school because she won't come to school 'cause she's grieving. And then they charged the father with truancy. How heartless is that? I'm sure your father would not have even approved that as a Supreme Court individual.

[03:12:49] How heartless is that? The Virginia Constitution delineates the General Assembly responsibility for education to the Board of Education. The Board of Education shall, that means it's not your choice, prepare and supervise the implementation by each school division of a program of special education designed to educate and train each child with disabilities.

[03:13:18] That's Virginia Code 22.1-214. That is your call and your assignment, and you're failing. You're failing our children miserably. I've been coming here for over 10 years, and you are not complying with your responsibility.

[03:13:40] You're allowing a culture of fake rape to be prevalent for profit. And I don't know what it's going to take. IDEA is a civil rights law. When you violate IDEA, you kill children.

[03:13:57] When you violate IDEA, you commit a hate crime. As of now, you guys are co-conspirators in this hate crime based on disabilities and based on race and based on gender. Now, if you can sleep at night, knowing that, because I don't, I don't sleep at night, because I know.

[03:14:18] If you can sleep at night, perhaps you need another job. Kathy Halverson and then Cheryl Wilson.

[03:14:33] Kathy Halverson, Powhatan County. I've been here the last three years. The front of the folder is my son. At 12 years old, he's learning the Purple Bible. He knows all about 22.1-214, and he'll tell you all about it.

[03:15:30] We actually received an order Wednesday, August 21st, for Judge Payne issued an order for my son to be placed in private school and home-based services until private placement.

[03:15:47] That's still, Powhatan is still ignoring that order. We have a settlement conference tomorrow. And if you remember, the IEP meeting in November of 2021 stated the same exact thing. So we have three years of my son's life has been thrown away. Three years of taxpayer money.

[03:16:04] Three years of my money has been thrown away. What are y'all doing? Nothing. The next one, CSA. I've talked about this. Scott Reiner stated a child's education cannot be interrupted due to funding. If it's an interagency, the county is supposed to go to the FAP team.

[03:16:24] His education has been interrupted for three years. The next one is seven pages on the authorization and how you fill out a CSA form, stating, I do not have to sign this form. I did partial consent, by the way, to CSA.

[03:16:39] The next letter, June 23rd, is from Samantha Hollins to Powhatan, stating you could not delay his placement any longer. That was ignored. The next one is from Lisa Coons, a formal letter of concern stating you cannot delay and you cannot make her sign a CSA consent to do it.

[03:17:03] Now, what's really disgusting to me and really sad is I had a meeting once again with Lisa Coons for 40 minutes. She knew all about my son's situation. I have it recorded. She went to a federal court judge and had an affidavit on here stating she knew nothing about my son's case.

[03:17:27] That is false on all levels. I expect her resignation today. Cheryl Wilson and Tammy Shea.

[03:17:45] Good morning. My name is Cheryl Wilson. My grandson attends Henrico High School. My plan is what are you all doing about the racial disparity that's going on in Henrico? Henrico is third in the nation for fun and not black children.

[03:18:02] children with disabilities from the school to prison pipeline. Now I've won my due process complaint and child and parent is the prevailing party. We are still waiting for him to be placed privately. I will not send my grandson back into a school that funneled him, robbed him of his innocence back to the environment that abused him.

[03:18:30] Henrico is third in the nation, not the county, not the state. They are third in the nation. Third world countries are not third in the nation. For fun in our black and brown boys and girls from school to prison. And you all sitting here with your big salaries like it's okay.

[03:18:49] It is not okay. So I am going to ask the Department of Justice. By me working Delta Airlines in Atlanta for 25 years. I will all ask Homeland Security. I will ask the U.S. Department of Education to come in here and figure out what's really going on.

[03:19:06] Because just last month Henrico Citizen posted that half of the student body, which were African-Americans in Henrico, was suspended at least one time. One time that school year.

[03:19:22] And you sit here like, "It's okay." I'm like, "Dr. Lucas, if you can sleep at night knowing this is going on, then you all need to find something else to do." And I'm gonna leave you with that. Because it's unreal to me.

[03:19:39] I come from a family of educators. my grandson i knew that the minute his mdr determined that it was a manifestation of his disability he was not supposed to be touched and they offered him over to law enforcement so you know what his charges went to from assault and battery to assault by mob this is corruption this is rico charges this is my visa and you're sitting here tammie shea here oh sorry about that

[03:20:20] dr valerie robnolt and eileen chollett good afternoon members of the virginia board of Education. My name is Valerie Robnolt and I live in Henrico. I'm a literacy faculty member at Virginia Commonwealth University, the reading program coordinator and prepare pre-service elementary teachers for their first teaching position and in-service teachers become reading specialists and literacy coaches. I have taught thousands of teachers and literacy professionals that serve in our schools across Virginia and beyond. I have a PhD from the University of Virginia in reading education, have been at VCU for 21 years, earning tenure and was the president of Virginia State Literacy Association in 2012-2013. My VCU colleagues and I have to maintain the

[03:20:59] highest quality of our programs by continual evaluation through the Virginia Department of Education and the Council for Accreditation of Teacher Preparation, which is called CAPE, by assuring that our students learn evidence-based literacy instruction and science-based reading research. We have approved programs by the VDOE and national recognition through the International Literacy Association. I say all this because for decades I had access to the Phonological Awareness Literacy Screening, called PALS, that was a screening assessment developed through the Early Intervention Read Initiative in Virginia so that I could teach my students about this critical assessment that they would be administering as classroom

[03:21:36] teachers and literacy professionals once they were in the field. Since March of 2024, in preparation for the replacement of PALS, I have been asking for access to the Virginia Language and Literacy Screening System, called VALS, that has been developed by the virgin literacy partnership but to no avail on saturday september 21st i received an email from the vlp giving me access to a powerpoint and videos but i still cannot see the actual assessment so that i can teach my students about it by not having

access to the vows assessment in which we can see the actual items on the subtest we are putting our students at a disadvantage in their current field experiences and preparation as future educators

[03:22:15] I am respectfully asking for support from the Virginia Department of Education to give myself and other Virginia higher education literacy faculty across Virginia full access to VAL so that we can fully prepare our students for their future careers so they can be the most successful teachers possible for the benefit of the children of Virginia.

[03:22:33] And thank you very much. Good morning. Eileen Schlam, the mother of a student with a disability in Fairfax County Public Schools. Thank you for taking the time to listen to us today.

[03:22:50] I wanna talk about the annual special education report that you're gonna get later today. That report says, in short, that everything is fantastic in special education. In Virginia, Dr. Samantha Hollins is doing a fantastic job and any problems are just in parents' perceptions, really.

[03:23:08] VDOE is currently, right now, under federal civil rights investigation. Two years ago, the U.S. Department of Education Office for Civil Rights found that Fairfax County Public Schools had committed tens of thousands of civil rights violations by completely abandoning students with disabilities during virtual learning.

[03:23:26] When parents filed state special education complaints about FCPS, VDOE told them in writing that whatever FCPS wanted to do was a-okay with them. Let me say again, in writing, and the feds have copies.

[03:23:42] OCR is in federal proceedings right now to yank Michigan's special education funding telling their school districts the exact same thing. Virginia will get our turn in about eight months. Now you may recall in March voting for a regulatory change to allow parents to file special education complaints against video itself. You should know that the system you voted for is a sham because parents file a complaint against Dr. Hollins and Dr. Hollins asks judge and jury and Judge Hollins says Dr. Hollins is in compliance. The parent then files an appeal

[03:24:17] and Dr. Hollins pays the appeal reviewer to say that Dr. Hollins is always right. It's just too bad for Dr. Hollins that using taxpayer funds to cover up misconduct violates federal and state state and federal special acquisition regulations. Who knew? The inspector general knew. Throw in the OSEP report, the 2024 one that everyone tries to tell this board does not exist, and you've hit the

[03:24:49] rare simultaneous investigation hat trick running low on time so i'll just briefly mention the special ed work group dr holland's convened to abides this board on how to deal with the findings from the independent consultants that she's engaged in a multi-year war with the feds of uncommon duration and intensity that work group didn't even attempt to comply with virginia's open meeting laws no minutes no public participation but plenty of participation from shady unregistered lobbyists representing the Special Education Administration. This board has a constitutional

[03:25:27] duty to effectuate the education policy of the Commonwealth. And if you don't start effectuating, one of these investigations is going to effectuate for you. And all the cheery annual reports in the world aren't going to help. Thank you. I believe that's the last of those who had signed up in advance. Are there others who would like to speak? Maybe just line up over here and please make sure

[03:26:05] you introduce yourselves as well. Good morning. My name is Amy Beaumont and I'm a parent in Arlington County. The new school performance and support framework is a major step forward in honesty and transparency, which will finally give communities a clear picture of how their school is doing. The prior system obfuscated performance and deemed nearly every school to be functioning at a high level, even when students were suffering catastrophic learning loss. We have needed an honest accounting and the present framework will do that. Now there has been criticism that the new framework is too honest because it is showing areas of weakness. But isn't that what we need?

[03:26:43] Because you can't solve a problem if you can't see it. Some dispute the idea that Virginia's students are struggling, citing a CNBC survey of Virginia's favorable business climate. But that is a non sequitur as education accounted for only 5% of that rating. What we should be looking at are measures of student achievement. There, a different picture emerges. While Virginia's students have limitless potential. They suffered significant learning loss post 2020. In fact, as of last year there are only two Virginia school districts where students math SOL performance is above 2018-19 levels. Tempering that, however,

[03:27:23] is the fact that many districts are making good progress in recouping some learning losses last year, benefiting greatly from all-in tutoring. If we stay the course, numerous districts could recoup learning loss fully next year and and move beyond. The new framework will be critical in ensuring these gains are made by keeping attention focused on that goal. The framework has many strengths. It will incorporate growth for all students in contrast to the prior system which only included growth for students who failed proficiency tests. It is also more inclusive. The framework limits the exemption for recently

[03:27:59] arrived English learners to three semesters in line with federal ESSA requirements and in line with other states. This means that 35,000 recently arrived English learners will be brought into the accountability system and will be better able to receive support. The framework also lowers the end size for disaggregation of data for subgroups in line with calls from numerous civil rights groups. Because of this, an additional 448 schools will now be held accountable for the performance of students with disabilities, and an additional 266 schools will be accountable for English learners.

[03:28:34] that is a tremendous achievement thank you for your efforts in developing this new framework hi my name is vanessa hall i'm the vice president for public education i'm also a parent of students in fcps and a proud graduate of virginia public schools i stand here for a second time asking you all to be accountable to virginians i was disappointed last month that you voted against the public interest to pass the videoe accountability overhaul i wish i were surprised

[03:29:13] that you and VDOE ignored input from hundreds of educators at the eight listening sessions, but I'm truly astonished that you rejected input from two school systems that represent nearly a half million public school families. Instead, you solicited input from groups like the DC-based Fordham Institute who are interested in disrupting and defunding public schools and handing taxpayer dollars over to private institutions with no accountability. You failed Virginians because your rubber stamp on VDOE's accountability overhaul will likely harm Virginia's education reputation when you artificially reclassify hundreds of schools as failing overnight.

[03:29:51] Why would businesses, homeowners, or parents choose a state with a supposedly failing school system? Maryland will reap the economic benefits of your folly. In truth, your accountability framework will distract from education goals for all students, but will harm students with learning

disabilities the most. In particular, first, your additional assessments and special projects will take valuable learning time from core subjects despite no evidence that they will improve education outcomes. Nevertheless, you add more pressure on students despite knowing that our youth are struggling with mental health. I find this dangerously stupid. Pardon

[03:30:29] my language. Your second-year accelerated coursework measures judge our schools based on above grade level proficiency, for example, college coursework in high school. Besides barriers of cost, language, and availability, at least 20% of our students with disabilities cannot access such accelerated coursework.

[03:30:47] Honors, AAP, and dual enrollment classes are not structured to support most neurodiverse learners, especially those with dyslexia, which affects one in five people, including my daughter. Now onto your three E's. in my life did I think that VDOE would make my child a fall guy for her school, but you have. My child's college-bound, hardworking, and smart with great grades. Yet she cannot succeed in your 3E framework due to systemic and adequate IEP support and accelerated college-level courses. Per your measures, my smart, successful daughter is not considered ready for life.

[03:31:24] And honestly, I find that a disgusting way to measure children. Our governor has spent the last three years amplifying a false message that Virginia schools are failing and now he has you to ensure that's true with your irresponsible accountability policies. I'd also like to address the fact that last time we were admonished like we were children for clapping and that's part of free speech is for us to be allowed to clap. If we're not allowed to clap then please put it in the rules. Thank you very much. Hi, my name is Michael Karabinos from Chesterfield County and I

[03:31:59] ask you who do you serve and who do you trust? I look at these meetings and I see that some of you at least are attentive to the speakers, like you actually wanna hear our input and care about what we say, and some of you are. So I will appeal to those of you that do pay attention and listen during public comment.

[03:32:18] Every month that I have been watching and aware of education since I had to get involved in 2020, I've seen, especially this administration and this board, seemingly want to crash the system in this state. The governor ran on the false statement that Virginia schools are failing, and it seems like that the board that he has appointed is determined to serve him and making his false statement true in this case by cooking the books to make the books look like they're failing when they're not we know they're not when the actual

[03:32:53] data points to the fact that his statement is false so do you serve the governor and his agenda do you serve privatization and church schools who want that money in their pockets and don't want the accountability that should come with it or do you serve the children of this state the families of the state the people who actually are looking to you to do right i have seen from this board history standards skewed by partisanship i'm seeing special ed students denied their education

[03:33:28] i'm seeing a school to prison pipeline that has yet to be closed down i'm seeing transgender students being targeted for abuse i'm seeing esl students being set up for failure and now the entire school system with this accountability boondoggle being built out to make this governor's false statement into prophecy. So who do you serve? The governor's agenda or the people? Who do you trust? The educators telling you not to do this or the lobbyists telling you that this is good for

[03:34:05] their agenda? No child left behind is a horrible measure by which to compare any school system. It was a failure in 2002 and the fact that we have not undone it is one of the greatest failures of this nation. There's no funding improvements. If you find a problem, how are you going to fix it?

[03:34:27] there's no funding there's no way there's nothing built it's an unfunded mandate this is all about continuing to shuffle the decks every time an educator gets used to one system you throw a new system in their way and why aren't we looking at schools like systems like Maryland and successful states rather than pulling resources from failing states like Tennessee that's what I want to know why are we not looking at the successes not the failures in this

[03:34:52] country thank you wrapping up our public comment dr. David door the the Virginia Community College System asked me to just share his statement he said although the State Board of Community Colleges has not taken official position on the Virginia performance and support framework we are in support of the Board of Education's commitment to having high expectations for all students and providing the necessary resources for students to reach their potential more

[03:35:30] over we are committed to the alignment of opportunities in high school to a workforce credential or an associate's degree that is available and attainable through one of our 23 community colleges and communicating those opportunities early on to students before they reach high school we look forward to continued collaboration with the Virginia school superintendents and school divisions as together we continue our mutually important work Dr. David Dorr all right well thank you and we will move to the next item on our agenda which is the consent agenda we will have our first and final review to certify the list of

[03:36:10] qualified persons for the Office of Division of Superintendent of Schools and the first and final review of nominations to the Board of Education Advisory Committees. Is there a motion to weigh first review and approve the items on the consent agenda? So moved. Thank you. Ms. Ashton? Aye. Ms.

[03:36:36] Holton? Dr. Northern? Aye. Mrs. Kilgore? Mrs. McPherson? Aye. Dr. Bryce? Aye. The Vice Chair votes aye.

[03:36:52] All right. I think, Jim, you're up, and let's maybe try to get through these two items, and I'll make an audible on lunch. Our next item on the agenda is the final review of regulatory actions resulting from periodic reviews.

[03:37:14] There have been known changes to this item since first review. All of these are regulatory actions that I would characterize as cleanup in response to periodic reviews.

[03:37:38] Sorry, I was talking. No, no, no problem. The recommendation from the superintendent is that this item be approved. Okay. Thank you. Is there a motion to approve the regulatory changes described in the item as well? It's approved the national external diploma exam competencies promulgated by the American Council on Education.

[03:37:58] As many of the requirements, A-VAC 20-30-20. Is there a motion? So moved. Is there a second? Second. Any discussion? Ms. Ashton?

[03:38:16] Aye. Dr. Bryce? Aye. Mrs. McPherson? Ms. Holton? Aye. Mr. Kilgore, aye. Dr. Northern, Vice Chair votes aye.

[03:38:32] All right, next item up, Mr. Chapman. Thank you again. Again, this item is for final review. Discussed last time, there are technical revisions to the board's bylaws and as well as a set of policies regarding remote participation in all virtual public meetings. We have basically done a cleanup of the board's bylaws.

[03:38:50] In terms of changes since first review, at the suggestion of the board president, We have included a provision that at special and emergency meetings, public comment shall be limited to items on the agenda. We've also included a list of references to legal responsibilities that were removed from the bylaws as attachment three.

[03:39:08] But the recommendation from the superintendent is that the board approve the proposed technical revisions to the bylaws and the policies that have been included. Thank you, Mr. Chapman. Is there a motion to approve the proposed technical revisions to the bylaws and policies in attachment three? So moved.

[03:39:24] Second. any discussion? Mr. President, I do have a concern and I apologize to my colleagues that I did not, I neglected to pay as much attention to this item as I should have last month when it was on for first review, but I do think there is, my concern, and I have raised this with President Creasy, and I'm sorry she's not here because I think she sees it differently and it may be that it's in our best interest to continue it over so that we can hear her.

[03:39:59] But there is a proposal in this new language to change how we select the president and vice president, the officers of the board. And the change is to move that selection from our current process and, frankly, the standard across other boards in Virginia, I believe, from July to June.

[03:40:21] So whether we do it in the first month of the new fiscal year or in the last month of the old fiscal year is the question. And the proposal is to move it to June. And I'm just concerned, and, you know, frankly, I'll be gone from this board after this June.

[03:40:39] So this is not – I'm more worried about you all's future process than – I won't be personally involved. But the moving it to June means that you are going to have board members voting on who's going to be the new president who aren't going to be serving on the board because the new appointees start on July 1st, and you also have people who won't be able to participate who will be serving under that new president. And you also have people, so just for instance, this time this year, I will be going off

[03:41:18] the board in June, and I would be voting. You don't need me to vote on who the next president's going to be because I'm going off. It would be much better for my replacement to be voting on who the next president's going to be. And meanwhile, Mr. Rotherham is up for reappointment. I'm sure, I hope, that he is planning to submit his name for reappointment. I hope he is reappointed, but he won't know when we meet in June whether he's going to be reappointed or not, and therefore, could he be considered for an officer role? Might he want to be considered

[03:41:54] for an officer role. In June, that's not feasible. In July, it would be. And I'll just say, and I don't really mean to belabor this point, but I will say all of the other boards I'm aware of, and I will say I'm not as aware of the ones outside of education, but all the boards of visitors, they all elect their rectors in July with the new board. So I think this is departing from the normal practice and I would just encourage us if we're going to do this perhaps we should wait to get Miss Creasy's input because she I think would

[03:42:33] support if she would make the case that there might be some reasons to do it in June instead of July but you should hear and you should hear them from her yourself but also that we get our legal counsel to advise us on this am I am I right about the standard practice among other boards I don't see Miss love in the room but maybe we can get her in the room but um and or you know is there a standard practice or is there anything in the code that would help inform us and I'll just say one last thing I do understand from conversations with Dr. Koons as well as Ms. Creasy that one of the concerns is

[03:43:12] making sure that there's somebody who has authority to act on behalf of the board as president you know, throughout the period. Thank you, Ms. Love, for joining us. But I'm sure that those other boards, the boards of visitors and this prior board, there must be another legal solution to that problem. And for that reason, that's something I think Ms. Love can advise us on if we can continue this over one more month. So that's what I would ask. Ms. Hulton, I appreciate the comments and suggestions. I did talk to President Creasy about this, and I actually see it from another

[03:43:50] perspective in terms of good governance for this board i think it's important for us to have continuity and constancy and there's a lot this board is very different than most of the board of rectors where they meet quarterly or thereabouts we meet practically every month and when i look at the gaps of having a president not in place for a month and could even be more if we ever maybe don't have a July meeting. I just think that the benefits far outweigh, and I appreciate this,

[03:44:27] and I'm actually looking forward to having you get to vote one more time on this, if need be, but to me, the continuity of our governance structure and process outweighs the concerns and just, in my opinion, so I'll open it up to other questions or thoughts, but I'm not quite sure what your legal question is. Well, I would just say my legal question is let's find a way that we have continuity of authority and allow the new board to the new appointees to vote on the president. I'm completely confident there's a way to solve that with the language in the board

[03:45:05] and that's what I think our council could advise us on. Whether we provide that the prior president continues unless and until and then if that president is no longer, which is I think maybe what happened last time, no longer a board appointee, then that there's some pecking order that provides. There's a solution that can fix this. Are you recommending making a motion that would move it over to the next meeting? Yes, that would be my request, and I can do it by motion if that's helpful. Yes, I move that we continue it. And I will say, I believe this motion requires,

[03:45:41] I think, to change the bylaws, we need seven votes, and so I think you need my vote. Isn't that right mr chapman doesn't the the current bylaws say you have to have seven votes leave counsel correct me wrong but if you're going to waive first review and change it on a single review then it requires a unanimous vote well help me on that because that's what i'm saying no but i i thought it said that let's look at it's you you you highlighted it in your dead

[03:46:08] And I'm not, I don't think there's any question that we've had first and final that I don't have any issue with that.

[03:46:40] But if you don't have my vote, then I don't think you, unless I'm counting wrong, I don't think you have seven votes to amend it. And therefore, I suggest we continue it over to next month where you'll have more votes, number one. And number two, we can, in the meanwhile, ask council if they can help us find a way to solve the authority problem without creating unintended consequences.

[03:47:03] What I'm going to suggest we do is we'll hold on this topic. We'll leave it on the agenda, but we'll move on, and we can – I'd like to get counsel and understand this not on the fly of what the board's considerations are, so we will – And now, Mr. – I'm sorry.

[03:47:21] Just one more thing. I do think that – I think I'm correctly speaking for both President Creasy and Dr. Coons in that there is not an urgency to resolving this such that a delay for another month would – In other words, this is not something that we otherwise need to address right now as opposed to next month.

[03:47:41] It doesn't create any problems to wait. And I may be wrong. Dr. Koons can obviously speak for herself, but I did raise that issue with President Creasy, and I think I'm correct in saying she was comfortable waiting if we needed to. There's no urgency from the department to have to vote today.

[03:48:02] Okay. Well, let's thank you both, and we will put this over to the next meeting. Okay. Where are we on the agenda? Are we on item E?

[03:48:20] I'm sorry. No, I'm just for point of clarification. So are we going to vote on the motion and just move it over to the next meeting? Or are you saying just wait until the end of the day today and come back to this again? We'll just vote to move it to the next month's agenda.

[03:48:36] And so my motion would be that we continue it to next month's agenda and seek legal counsel's advice on the issues raised. Second. Second. Thank you. All right, we'll take a vote.

[03:48:50] Dr. Northern? Ms. Ashton? Aye. Dr. Bryce? Aye. Ms. Kilgore? Mrs. McPherson? Aye. Ms. Holton? Aye. And the chair votes aye. All right. So on item E, we, Ann, thank you for being with us today. We are the final review of the proposed supplemental and intervention approved programs for K-5.

[03:49:27] Good morning. So this is the final review for K-5 ELA supplemental intervention. This was reviewed by the Virginia Literacy Partnership at the University of Virginia that is required by the Virginia Literacy Act. This list provides school divisions with approved options that have met the bar for quality through a materials review process.

[03:49:50] Divisions have the option of selecting a supplemental or intervention curriculum to support additional time and supports for their students and classrooms. Additionally, I want to note there was a name change in one of the products for Just Right Reader.

[03:50:06] What was formally titled Take Home Decodables 2023 is now called Take Everywhere Decodables in Classroom Libraries. When the final recommendation guide is published, that name change will be on it with an asterisk below showing the product went through the same process, and it was a name shift from the previous meeting.

[03:50:25] The superintendent recommends that the Board of Education approve the recommendation for updated intervention instruction programs and supplemental instruction programs to comply with the Virginia Literacy Act. Thank you. Is there any questions? Is there a motion?

[03:50:46] There's a question. Ms. Northam, Dr. Rimmel. Hi there. I just wanted to get some clarification on the cycles. I've noticed this was cycle three, whether, I don't know if we have any more planned or how those cycles play out.

[03:51:02] And then my second question was just about the, I noticed that with the intervention, or it could be supplemental, it's approved for a particular, you know, it's approved for phonics or it's approved

for comprehension, but it's not approved for these other things. How, I guess I'm just want to get your opinion on if teachers are, get training or they understand how to, you know, pinpoint the intervention to a particular skill they're trying to foster as opposed to using the whole thing and whether that's, you know, easy to figure out or whether the material itself may provide some guidance on that.

[03:51:41] Sure. So to answer your first question, we're working with the Virginia Literacy Partnership for additional cycles. So you're correct. We've done three here. There's also one for grade six to eight coming. And so we'll continue to provide more information around timelines for that.

[03:51:57] And then to your second question, I think one of the best things about our new literacy screener vowels is that it will have more information for teachers to be able to pinpoint where those areas are in which their intervention curriculum that they select from will be able to align.

[03:52:13] So they see that a child needs more support in decoding, they can use those intervention materials to support that. So those reports that teachers get will help them to do that. Okay, thank you. Was there a motion to approve the recommendation for updated intervention instructional programs and supplemental instructional programs to comply with the VLA?

[03:52:34] So moved. Thank you. Second. Thank you. Dr. Northern. Aye. Ms. Ashton. Aye. Dr. Bryce. Aye. Ms. Kilgore. Ms. McPherson.

[03:52:51] Aye. Ms. Hulton. Aye. The chair votes aye. Thank you. Our next item is item F, first and final review of recommendation regarding the literacy loan, fund loan applications, approval for release of funds, and Kent Dickey.

[03:53:15] Thank you, sir. Good afternoon, Vice President Hanson, members of the board. This first item is a first and final review of recommended literary fund loan application releases. And in this item, this is a batch of $126.2 million in loan requests to be released for nine school projects and four school divisions.

[03:53:43] That's Campbell, Giles, Pittsylvania, Roanoke Counties. They have applied to the Literary Fund over the last several years. They have now met all the submission requirements and documentation requirements necessary for release of the loan on the projects.

[03:54:00] buildable plans have now been submitted and there's a brief description of each of the nine projects in the executive summary most of these are or all of these are addition or renovation projects to existing schools of various amounts requested in loans and interest rates based on their composite index would be at two or three percent depending on the school divisions composite index the superintendent of public instruction recommends that the board waive first review and approve the release of these nine literary fund loans requested by the

[03:54:40] four applicant school divisions based on the loan amounts terms on and eligible interest rates requested in their loan applications is describing the executive summary section of the item. Thank you. Mr. Dickey are there any questions?

[03:55:00] The chair will entertain a motion to waive the first review and approve the release of the nine literary fund loans requested by the four applicant school divisions based on the loan amounts, terms and eligible annual interest rates

[03:55:15] requested in their loan applications. So move. Second. Ms. Ashton? Aye. Dr. Bryce? Aye. Mrs. Kilgore? Dr. Northern? Mrs. McPherson? Aye.

[03:55:41] Ms. Hulton? Aye. Chair votes aye. All right. The next item is G, Person Final Review of the Proposed Literary Fund Interest Rate Schedule. Thanks, Vice President Hanson. This is a budget directive from the Chapter 2 budget adopted last spring requiring the board, in consultation with the State Department of Treasury, to establish loan interest rates that are benchmarked to a market index on an annual basis.

[03:56:14] for the various tiers of school division composite indices. Your current guidelines from last biennium's budget directive already achieved that. We've established the market index rate in conjunction with Treasury, and we operated within your guidelines last biennium in issuing loans based on that market index.

[03:56:43] So the change here is essentially in the last language provision to provide interest rates that are reasonably below such market index. So not only would the market index that is established now drive the rates allowed on released loans, There's got to be some provision for approval of interest rates below the market index.

[03:57:16] So essentially, moving off the current process of the market interest rate that's established and also the current five composite index tiers, and some of that information shown in a couple of tables in the background information of the item, You can see the array of composite index tiers or ranges in the associated default interest rates.

[03:57:48] That's really the basis to make these changes in which we worked with Department of Treasury staff for the proposal here. Attachment 1 really is the best schematic or data diagram of the proposal here.

[03:58:08] But essentially, the concept, as shown in Attachment 1 in the item, starts with the established market index rate. In the example here in Attachment 1 is showing a rate of 3.25%, and that's really close to current market conditions for that rate.

[03:58:30] And the key change that has to be established here is establishing some discount rate, we're calling it, that would be applied below that market index rate of 3.25 that would apply to all school divisions as a starting point.

[03:58:48] Further down in the diagram and attachment, one consistent with your current guidelines and actually current regulations where the lower the composite index for a school division is, the school division is granted a lower interest rate.

[03:59:09] We continue that approach here and apply an increasingly higher discount rate as the composite index tier decreases. So, for instance, the very highest tier of composite indices of 0.6 and 0.8, which is in your current guidelines and regulations, Under this proposal, the base discount rate for those highest composite index school divisions would be five hundredths of a percent, a small discount off the current market index.

[03:59:47] And for instance, off a 3.25 index, that would be an interest rate of 3.2. So that achieves the budget directive to provide some reduction or discount off the market rate.

[04:00:03] You also will see an attachment, one, as the composite index tiers decrease towards school divisions who have less resources, as indicated by a lower composite index.

[04:00:19] They would see an increasingly higher discount to the market rate, and you see that in the data, and that can be as high as a 0.8% discount off the market rate. So there will be a, under this data, there

would be a spread between the highest and lowest ranges of three-quarters of a percentage point.

[04:00:43] We thought with Treasury that was a reasonable spread between the highest composite index school divisions and the lowest that the index divisions that the literary fund is intended to help most.

[04:01:02] Attachment 1 really conveys the concept here. The key principle is higher composite index school divisions will receive a small discount or small reduction that would be available.

[04:01:19] The lowest composite index school divisions will see an increasingly higher reduction off the market rate to help benefit them because they have lower ability to afford school capital costs. The final feature of this, as shown in the last column of attachment one, is it will still hold school divisions harmless to the traditional default interest rates of 2%, 3%, 4%, 5%, or 6%, and select the lower of the two.

[04:01:55] So there's a feature here, as in your current guidelines, to select the lower of the discounted market rate or the default rates that have existed in your regulations for some time, and that's typically a 2% or 3% interest rate for the types of school divisions or localities that come to the literary fund for loan funding.

[04:02:24] So a fairly technical item here, but we feel good, and Treasury staff, they feel good about the balance here of achieving the budget directive, but giving clear benefit of a lower interest rate through this mechanism for the lower resource school divisions.

[04:02:47] Thanks. Thank you, Vice President Hanson. Thank you, Mr. Dickey. Are there any questions or comments? Well, very, very helpful. I just appreciate your expertise on this, and it's a very big help to the department and to the commonwealth and to the board.

[04:03:05] Is there a motion to waive first review and approve the proposed literary fund interest rate schedules presented in Attachment 1 and further to approve the department staff incorporating the schedule in the board's literary fund guidelines for the 2024-2026 biennium?

[04:03:21] I have a question. So, as it relates to a school, for instance, that has a lesser ability for capital improvement versus one that may have more availability as far as funding is concerned, who makes a firm decision as to whether they get the 2.0 or the 3.05% rate?

[04:03:43] Yes, ma'am. Yeah, it would be data-driven based on market conditions. The point at which the open application process for literary fund loans, and that's the process under the Appropriation Act, there are designated open application periods each fiscal year for localities and school divisions to apply.

[04:04:05] The date of the release of the application announcement, the market rate is established that business day, and then this mechanism, if approved, would discount those rates according to the schedule here, and that would be compared to the default interest rates from 2% to 6%.

[04:04:36] The lower of the two rates, depending on the school division's composite index, the day of that application announcement, that would be the eligible interest rate. So, in part, it depends, you know, on market conditions.

[04:04:52] Right now, today, school divisions that historically have been eligible for a 2% or 3% interest rate, the 2% school divisions would come in under the default 2%.

[04:05:09] The 3% school divisions under current marking conditions with the discounted approach would be eligible for a slightly lower rate, as you see in the example of an attachment 1 of 2.85. So it's

established on the day of the application release.

[04:05:33] Is there a motion to quick? Is there a motion? So approve.

[04:05:49] Is there a second? Second. Dr. Price? Aye. Ms. Ashton? Aye. Ms. Kilgore, Dr. Northern. Aye. Ms. McPherson.

[04:06:05] Aye. Ms. Holton. Aye. Chair votes, aye. Kent, if you could just stay there for two minutes. On behalf of the firing after decades of service to the Commonwealth, we just, as you could tell, the last two presentations handled some of the most complex and important components to make the engine go and make sure that the funding is working for our kids and our schools

[04:06:45] And just also, just really appreciate your leadership as a relatively board member to help us really understand the budget process, the finance, the operations. But also just know that your leadership has just made an available impact.

[04:07:01] We'll have our effects for good throughout the department with all those that you've trained and tutored and mentored over the years. But just really on behalf of the Board of Education, I wanted to present you with a resolution of appreciation. Thank you, Mr. President, I appreciate that.

[04:07:22] Thank you. Anybody else that would like to fight that? Thank you, Mr. President. I'd love to weigh in.

[04:07:38] Kent, you've just been such an indispensable ally, not just to us on the board, but to Virginia Public Education writ large for so many years. I don't know how we will get by without you. I hope that your, I'm sure, very able successor has your number on speed dial and wouldn't be surprised if a number of us figure out how to get your number.

[04:08:00] You have, among other things, you have taught us all. I mean, as you know, our funding formula, our system here in Virginia is very complex, and about the third time you patiently walked me through your PowerPoint presentation, I began to understand it, but only because of your extraordinary patience and teaching skills.

[04:08:22] Your expertise is invaluable and unreplicated in the Virginia system. We will miss it terribly, but I want to say most importantly, you have such integrity and you have gained the trust of everybody in this system across parties, across local and state government, the General Assembly, all of our stakeholders.

[04:08:51] When Kent says something is so, everybody believes it. And even though we don't always understand, as exemplified by that last item where we're all a little scratching our heads, but we trust you, and therefore we're okay with it. And as I say, I just want to add my personal thanks and appreciation on behalf of Virginia school children.

[04:09:13] We'll miss you. Thank you. Thank you, Mrs. Holt. I really appreciate that. I mean, it's been an absolute pleasure. And I thank you all for your time and commitment and talent serving on this board, which is one of the – I can't think of a more consequential state board and state government, the impact of the decisions, the time, commitment, and the complexity.

[04:09:33] So we all thank you for your service and time, and it's so critical. But, no, it's been a terrific run at DOE. Virtually all of my state career was at the department.

[04:09:49] Many leaders have come and gone, colleagues. It's just been a terrific place to work and have an impact and make a difference. And it's been a wonderful climate and tone to build a career and make a difference and have an impact.

[04:10:10] So some days have been long, but really the decades have sort of slipped away on me. But it's been a while. I couldn't have imagined working anywhere else in state government to afford in terms of what DOE affords you in a state government career.

[04:10:30] So it's been wonderful. My absolute pleasure and delight that Christina Berta has now joined the department, essentially in my role, and we're working out all of the details of that.

[04:10:47] But Christina is, of course, bringing a lot of local perspective, which we always benefit from. But she also was at the department two years prior, from 2019 to 2021, went back out to a school division.

[04:11:07] So I feel like we've got the best of both worlds. She's bringing that valuable local perspective, which was extremely helpful to me when she was here doing her two-year tenure before she went back out to another school division opportunity. Thank goodness she's back.

[04:11:24] We'll be overlapping about a month, but really so pleased. Christina's back at DOE, and she will be a valuable advisor and staff resource for you, and you'll really enjoy working with Christina.

[04:11:41] I think we're in absolutely good hands with Christina coming in. I feel really good about it, and we've got a few valuable weeks to work together. So welcome to Christina. you know Kent I have avoided this day and we're still in September so I don't have to think about this so I want to there's no one who's here earlier leaves later and is more committed to Virginia children than you and you find ways to

[04:12:17] make things happen and work with numbers and data and a lot of people don't always equivalent to that to changing opportunities for children but as we've said in a couple of other instances you are the biggest champion and I am just incredibly grateful to have spent the past 18 months and we keep continuing to ask you not to go to Italy and stay with us but I think your wife's gonna win and we understand that but we are so well I am responsible for the last two-third installment payment so I'm yeah yeah well we cannot thank you enough for just

[04:12:55] the tireless work and effort that you do every single day and we are incredibly grateful to have Christina who Kent has championed all through the process come alongside and have two years of opportunity to learn from you and is transitioning over the next month so we are really lucky to have both of you together over the next several weeks thank you well if it's okay with the Members of the Board, I think we will break here and come back to Item H through the rest of the agenda

[04:13:34] after we grab a bite to eat. We will be adjourned until, what do you think, 140? 140.

[04:28:15] Up is Agenda Item H, first and final review of the regulatory actions

[04:50:05] relating to the Virginia Standards of Accreditation. And, Jim, we've got you up for the next three items here, so we'll turn the time to you. Thank you, Vice President Hanson, members of the board and Superintendent Koons. This action is a first and final review of regular interactions for the SOA.

[04:50:22] As you know, one of the board's major activities over the past year has been the repeal of the standards of the previous standards of accreditation in 8VAC 20-131, and the promulgation of a new standards of accreditation that went into effect yesterday, which is 8VAC 20-132.

[04:50:43] In the process, because of this transition happening right as legislation was becoming effective, we had a couple of pieces of legislation that we believe would have qualified as exempt actions, but because the new Chapter 132 wasn't effective yet, we could not bring those with exempt actions as we normally would have in July. So we're bringing these to you today as a fast track item. These are all legislative cleanup in some manner or another. The most notable, I think, is enacting chapter 612 from the current legislative session, which has to do with expedited retakes of standards of learning and assessments. As an underlying policy, I will just note that we think

[04:51:21] this is largely a codification of things that were previously in board guidance, and so a lot of this is being brought into the regulations, especially like the test range, but this is what the legislature has said and so this regulatory action is designed to effectuate that we've also got a couple of minor change that are the result of legislation for example there was a slight tweak to the requirements to conduct fire drills and so we're aligning that to the statutory requirement there is similarly a previous action that the board had approved that got caught between this transition having to do with lockdown drills and so we're again aligning this

[04:52:00] directly to the statute and in the process we noted there is one piece of legislation that's referenced from back in like 2001 that has to do with tornado drills it's a it is currently a statutory requirement that schools conduct tornado drills we couldn't see any reason why it should not also be in the SOA as it's in the same section as these other requirements for lockdown drills and fire drills and so we're just adding again straight to the statute we don't believe that this is an action where the board is exercising any discretion the language that we've taken is coming directly from the statute and So we are asking, and the recommendation from the superintendent is to waive first review

[04:52:37] and approve the regulatory action now that the new SOA has become effective. Thank you, Mr. Chapman. Is there any questions or conversation? Dr. Northern? Yeah, I'd just like to say that I was on the HB 585 work group, and this was one of the main feedback that we got from the folks is that they really wanted this expedited retake of the SOL.

[04:53:00] So really glad to see that in here. The comments, then we will, is there a motion to waive first review and approve the regulatory changes included with this item? Motion. Thank you. Second.

[04:53:25] We'll take a vote. Dr. Bryce? Aye. Mrs. Ashkin? Aye. Mrs. Kilgore? Dr. Northern? Mrs. McPherson?

[04:53:40] Aye. Mrs. Holton? Aye. And the chair votes aye. Mr. Chapman, the next item, aye, first and final review of the finalization of periodic reviews and regulations. Yes, thank you, Vice President Haynes. believe the board is becoming familiar with these finalizations of periodic reviews we have four chapters that the board has authorized for us to open over the first six months of this year that we have have closed out and so we're bringing those to the board for finalization as a brief summary of the results 8 vac 20-310 is the rules governing instructions concerning drugs and substance abuse the video a staff has found that the underlying policy we

[04:54:17] think is is largely good and but we we would like to bring some tweaks to the board at a later time just to updates and language this chapter hasn't been updated since about 1980 just to reflect some more current terminology but we believe the underlying policy will stay the same 8 BAC 20 - 320 this is a chapter that we believe should be repealed again it was promulgated in about 1980 and was largely meant

to address how what's the school division requirements were before the SOL. And so this chapter references curriculum guides and things that are now no longer used in

[04:54:54] Virginia since the SOL became part of the Virginia public school system in the late 90s, early 2000s. I would describe this as like a regulatory vestigial organ. It just doesn't serve a purpose anymore. And we think that this can be done away with. So we think the result of this is that that chapter should be repealed since all of this is now covered in the physical, the PE and health SOLs.

[04:55:18] 8VAC20-565 is the Regulations for the Protection of Students as Participants in Human Research. This is a chapter that's required by statute that aligns very closely with state statute regarding human research in a different part of the code that's not under the board's authority.

[04:55:35] We think that this chapter should be retained as is. And then 8VAC20-730 is the Regulations Governing the Collection Reportings of Truancy-Related Data and Student Attendance Policies. In reviewing this, it appears that this chapter has not stayed in step with statutory requirements.

[04:55:51] There are a number of overlapping and competing requirements with the statutory structure. So what we think should happen is that this chapter should be repealed, save for a couple of pieces regarding data collection, which we think ought to be moved under Chapter 720 for the rules governing local school boards and school divisions.

[04:56:12] Again, we think that in this case the statute gives a very clear expectation of what should happen with truancy procedures. We think the statute should speak on its own. If the statute says a parent meeting is required in seven days, we don't think the board should also say that at seven days of missed school, we don't think the board should also require meeting at six days of missed school because that creates two competing sets of requirements.

[04:56:37] And so we think that this can be moved into consolidated and moved under another chapter. Again, this is only closing the periodic reviews. Any subsequent regulatory actions will be brought at a future board meeting. But the recommendation is to waive first review and allow for these periodic reviews to be closed out.

[04:56:54] Thanks, Mr. Chapman. Any questions or Ms. Holtman? Jim, help me understand, what does it mean to close out the review? I understand we're not making any regulatory changes now. You're not asking us to. Yeah, so what we've included as attachment, one is the TH07 forms, town hall forms that include the results of the periodic review and so the periodic review results were essentially what I just summarized the agency is required to make a decision as to whether the chapter should be retained

[04:57:21] as is amended or repealed and so in this case that's correct yes that's correct yes ma'am so like the the item that you voted on earlier today were actually regulatory actions that resulted from the last batch of periodic reviews that we brought so we would do something similar at the next board meaning we would bring for first review regulatory actions to go through the actual repeal process

[04:58:07] Give the public a reasonable time to tell us, even though we don't think there's anything significant about you, the department may not think, and you may be right, that there's nothing significant about removing the regs governing physical and health ed, but we ought to give the public an opportunity to weigh in on that properly.

[04:58:24] And we're not foreclosing that all by now because all we're doing now is closing the public comment period and then we can go with the public if and when the department asks us to repeal the chapter governing physical and health ed there will be further action before the board and hopefully at that time we will separate first from final review as is our normal process.

[04:58:50] Yes ma'am that's correct and with the last round of regs we brought those for first review and then for final review. And also, just to note, there is a public comment period with these periodic reviews. So the public was allowed to weigh in. And I think part of the justification for bringing the closing of periodic reviews for first review is because we didn't receive any comments on these chapters.

[04:59:10] And so we take these to have been largely vetted. Yes, ma'am. Thank you for helping me. Any other questions? Well, is there a motion to weigh first review and approve closing the periodic reviews on the regulatory chapters identified in this item as presented to the board?

[04:59:30] Second. I'll take a vote. Dr. Bryce? Aye. Mrs. Ashton? Mrs. Kilgore? Dr. Northern? Ms. McPherson?

[04:59:47] Aye. Ms. Holton? Aye. Chair votes aye. Mr. Chapman, we have one more, I think, of Item J on the first review of the Fast Track Regulatory Action to Reduce Discretionary Requirements.

[05:00:02] That's right. Thank you, Mr. Hanson. This action is something that's actually related to an ongoing periodic review but it's an element of what we would consider to be a regulatory cleanup that we thought we could bring to the board a little bit more quickly in order to make sure that this was done essentially what's happening is we have what's called a document incorporated by reference which is a school bus specifications which we think has been slightly miscategorized instead of being a document incorporate by reference it's really just a series of checklists in order for you know school bus drivers and folks who do school bus maintenance to go through. We think it should be categorized as a form, and so all we're doing is tweaking just

[05:00:40] a little bit of language in two sections of the regulations governing pupil transportation in order to signal to the public clearly that this is being recategorized as a form. However, the regulations will still say that school divisions are supposed to use this form.

[05:00:58] So we don't believe that this is affecting underlying policy, but it is the type of shift that we think is in accordance with the Governor's Executive Order 19 and a command to get rid of regulatory reduction, this reclassification of this document amounts to about 180 discretionary requirements on count being recategorized and coming off of the agency roles, which towards the 25% reduction goal for agencies across the state, for this agency, for the State Board of Education, that would result in about a 5% decrease just on its own.

[05:01:30] And so it's a fairly significant item in that direction. And we also think we'll more accurately signal to the public how that document is supposed to function in the field. We are bringing this item for first review so that there's plenty of opportunity for the public to comment, to Ms. Holton's point.

[05:01:47] But we think that this is a very minor tweak that will just clarify how the document is functioning. Any questions for Mr. Chapman? Well, thank you, and we'll accept this item for first review next month in October. Thank you, sir.

[05:02:02] all right moving on to item K first review of severe allergic reaction training and Ms. Cooper chapter 171 of the 2024 acts of the General Assembly directed the board to do two things the first was to include severe allergic reaction awareness in the ninth and tenth grade health standards for learning and then two to review a video training produced by the students at McLean High School in Fairfax County and consider whether to approve the training or develop a similar training that will be used for severe allergic reaction awareness

[05:02:41] training the 2020 health education standards of learning currently contain the expectations that students demonstrate first aid skills including first aid for anaphylactic shock in ninth grade the periodic review and revision of the health standards that will begin in 2026 will reflect the specific content skills and severe reaction content that all the students need to be able to to demonstrate as a result of the legislation you all review the training video from Fairfax County this spring and so today the superintendent of public instruction recommends that the board authorize the inclusion of that

[05:03:19] video as an available resource in the severe allergy awareness guidance document that will be generated by video ease behavioral health and wellness team. Thank you very much. And is there any questions or commentary? I'm hearing none.

[05:03:42] Mr. President, our board member, our colleague Andy Rotherham, who was not able to be here today after the meeting changed from yesterday today, unexpectedly, sent in a written comment. And Em, I apologize. I don't know if you've gotten this yet, but his feedback says he would like have a stop the bleed training maybe more suitable training as part of our standards for first aid and doesn't know whether we have latitude under the first fast track today but if it's something

[05:04:21] we can consider at an appropriate opportunity is that something we can incorporate this legislation this legislation was specific about those two items which was the video for from fairfax county and then the addition of the health standards that'll start in 2026 could definitely take that feedback as we look into other things but it's this item specifically doesn't ask for that we can't do it on any fast-track thing today but we can this his input could be relevant in our revisions to the standards which are coming up in 20 we're happy to take all

[05:04:57] input thank you miss holton for bringing up mr rotherham's question um so thank you Mr. Cooper will accept this item for first review in October. See you in October. For item L, first review of the K-12 crew exploration redesign, and Mr. Armstrong will be leading this conversation.

[05:05:25] Thank you, Mr. Vice President and board members, Dr. Coons. It is my pleasure to provide the board with the first of what will be several updates in the months ahead related to the agency's work in aligning resources K-12 to our 3E readiness framework that is included in the approved Student Performance and Support Framework.

[05:05:49] Ultimately, we want our students to graduate from high school having earned at least one set of measurable 3E experiences through earning of high-demand industry credentials, achievement of high-rigor military preparation, and or the earning of transferable post-secondary credits that will engage them in seamless pathways to sustainable employment.

[05:06:09] Among the items that you will be presented for consideration and feedback are today's first review of the career exploration definition, and academic and career plan components. And in the months

ahead, an update on work-based learning components, implementation of the College Career Ready Virginia program, CT competencies, and associated school quality profile metrics.

[05:06:33] We appreciate the ongoing feedback. We are gathering to inform this process, including significant feedback we've received from this board related to today's items. And we will integrate that into our work moving forward toward final review in October.

[05:06:49] And in addition to the feedback from the board, we have convened a VDOE workforce feedback group that includes CTE experts, business and industry representatives, post-secondary leaders, school counselors, and principals. The membership of that group will be expanded as needed based on the item and expertise, and we had a robust conversation and received valuable feedback from the group to inform information you received today for first review.

[05:07:16] To improve consistency and depth of our work to align career exploration, we have provided a draft, comprehensive, consistent definition of career exploration that is developmentally responsive at each level. Again, this is a draft definition that has already undergone feedback from key stakeholders.

[05:07:33] As you can read in the attached document, this definition focuses on a K-12 progression, including connection between personal strengths and interests, skill sets and attributes, meaningful experiences in workplace environments, associated local character of work opportunities, and continuous inclusion of all key systems, including workforce, business, and post-secondary, to provide current access and resources to all students and families.

[05:07:59] Developmentally, career exploration begins in the elementary years with a focus on the five C's in exploration of national and state-recognized career clusters, moving to middle school development of the academic and career plan with flexible opportunities students to engage in 3E readiness high school opportunities, and culminating in high school with full engagement in 3E readiness experiences, concrete experience, and high-quality work-based learning.

[05:08:23] I would also like to note that we have scheduled an opportunity to gather targeted feedback from the Virginia Middle School Association, and as a former middle school principal myself, we know that the middle school years represent a critical window in both career exploration and ACP development, and feedback from that field will be informative to our work moving forward.

[05:08:43] With that in mind, I would like to provide the board with a brief overview of work in progress related to the Academic and Career Plan, or the ACP as we call it, which must be developed in seventh grade to be completed by the end of the eighth grade fall semester and included in the student's record. The ACP is intended to provide a framework that allows school leaders to log experiences through career exploration combined with career interest inventory and career investigations course requirements also taking place in the middle school level.

[05:09:10] Since its implementation about 15 years ago, the field has provided feedback that the ACP could be strengthened with additional technical support to provide consistency in the platform as well as more professional development for staff, including more resources for younger students to assist in career planning, greater connection with business, industry, and post-secondary partners to enhance exposure, and consideration for the work required to administer the ACP, which typically falls on school counselors who are already managing various responsibilities.

[05:09:40] As you see in the document attached, we have begun to populate the ACP progression to focus on student experiences. The Workforce Feedback Group provided their input on this initial list that will inform the development of an updated template that will ideally be provided and accompanied with robust technical assistance and resources for school divisions for consistent and quality implementation.

[05:10:01] The ACP should be a dynamic and meaningful document that supports student engagement and 3E readiness outcomes prior to high school graduation and should include regular input from K-12, post-secondary, business, and workforce partners. We are excited to continue collaborating with our partners and the board toward a product that will support our students and their career outcomes, and I am happy to take any questions.

[05:10:25] Thank you. I can understand that there's still an opportunity to add groups to the workforce feedback group. Yes, ma'am. We're keeping that dynamic based on the theme we're working through, so we can absolutely do that.

[05:10:42] Any other questions for Dr. Arbushal? Yeah, thank you, Dr. Arbushal. I've provided some written feedback. I'm sure you've seen Dr. Coons already. But I am happy to hear you're going to involve the middle school leaders more thoroughly.

[05:11:01] I do think that there are some omissions and some language issues in the current draft. Those were updated in your packet, based on your early feedback. I haven't read it again, so I will happily read it again. I read it three days ago, but not more recently, so I don't know what's changed.

[05:11:19] But I appreciate that. so i will take a look again and let you know if i have any further feedback but i did see in the in the public comment today i think it was item 106 in the spreadsheet i think i noted 100 106 public comment we received since last meeting was chesterfield county public schools raising two issues and one is there's a suggestion in the at least the draft that i read and i don't know if it's changed in the current draft about a suggestion of a job

[05:11:58] shadowing a full day job shadowing for all middle school students and the Chesterfield folks are raising concerns about that and so I'd like to ask that you make sure that you address that and we can we can talk about it next month if if that language is still there if you don't if you're not ready to address it today but I will say that I've had the opportunity and I don't know whether this is still happening post-covid but pre-covid i've had an opportunity to visit some very robust exciting job fair career fair activities that some of our divisions have done that were

[05:12:33] absolutely all-day events exposing kids to all kinds of careers but not the same as a job shadow and for all kinds of reasons job shadowing in middle school can be a complicated thing to administer so that would just draw your attention to that piece in the um uh chesterfield county uh feedback on this item and then the other piece in the chesterfield county feedback was they were raising concerns about the focus on the exclusive focus on high wage jobs and i think this is throughout the 3e framework which as we continue to refine i think it's worth

[05:13:11] a look at and i will just submit that we all we want all kids to go to high demand jobs because we want them to be employed and we want kids to go as much as possible to high-wage jobs but remembering that early childhood education is about as low-wage a job as you can get many teacher jobs are still qualified as low-wage two of my three children who went through the wonderful public schools of

our Commonwealth are working primarily in arts careers and They are supporting themselves, paying rent, making rent, and living fulfilled lives, but nobody would qualify their jobs as high-wage jobs.

[05:13:51] And so I think Chesterfield rightly raises a concern about overemphasis on the wage part, high wage as opposed to high demand. And so we just ask as we work on this further that we look at this. And then my final is, and I'm sorry to mix comment and question, but my final question is, I think you're not asking for anything today.

[05:14:12] All this is on first review. But next month, you're asking us to approve this guidelines document. And are you also asking us to approve a definition? And I don't, where is the definition? I see a several page. I can't tell what is the definition piece we're being asked to approve.

[05:14:29] Dr. Tunes. I'm happy to answer your first question that says example job shadowing. So we will be more clear in the next version that those are just samples and examples. And as you look at that document, the definition as part of the feedback that we received was vague and unclear.

[05:14:46] So there is an extensive several-page definition with examples and clarity and sub-bullets. I'm happy to walk through that with you. But the first several pages are the definition that is part of the package that you have in front of you today. So what we're being asked to approve, will be asked to approve next month, is that guidelines document that includes the definition.

[05:15:09] thank you I really just want to applaud the effort as a middle school principal as well yes in middle school and high school and what what what I think I'm seeing is students much earlier want to know what wage they can get and so being able to very consistently talk about employment enlistment enrollment early on um is incredibly important and i i also appreciate you just acknowledging how hard it is

[05:15:43] given the feedback around training and partnership and staffing i think the the direction is right and as long as we continue to make sure that teachers know how to give scholars the exposure throughout but don't take any options off the table i think is going to be incredibly important and continue to make sure that every kid has access to all of the options i think originally i thought well we're just going to start tracking kids they're all going to employment they're all going to military and when i read this i saw it is really about the early early

[05:16:20] and often exposure to make sure that by the time they finish they really have some experiences whether it's internships shadow days i saw it as a or as well i think that is incredibly important so thank you thank you thank you miss Ashley I'm sorry thank you one thing that I liked about this document is is towards the end where you're giving example activities and I would just encourage us

[05:16:59] to really flesh that out I'm happy to share some reports that I'm particularly familiar with where I think it'll give folks a real clear idea of the types of activities they could do and that kids would be really excited about so anyway I appreciate that we're not saying you have to do this but hear some really cool activities that'll help, you know, get kids excited about that exploration piece.

[05:17:22] Ms. McPherson?

[05:17:41] What life training will be, because I think it's somewhat unclear right now, and that may be where some of the public criticism is coming from, and I think that we just need to, whatever grid we're going to put together, wherever the defining moments are, where the decision-making can take place,

whether it's career development, whether it's military enrollment, any of those pathways, that bridge needs to be really clear, one, as relates to where we make the assessment, two, where the funding is going to go to support the new assessment

[05:18:17] if it's different than just a regular career choice, and three, how that's interwoven as far as instruction is concerned and transition is concerned. So I just really think we got to develop a bridge way not doctor thank you I'll take the promotion but I just one more thought in response to miss Ashton and miss McPherson's yes I do think there has been some public misunderstanding about the import of this document one

[05:18:54] thing I would love to make clear is I don't think that this document in any draft has attempted to add any new requirement about there being a high school I'm in a middle school academic and career plan that requirement was as you said at dr. Armstrong started in 2009 we added some refinements to that requirement in 2016 or thereabouts but that those are existing requirements that there be planning with students and there's actually the document must be signed off on by the parent and the student as well as the school and

[05:19:30] academic career plan by the end of I think the first semester of eighth grade in middle school, but that there's nothing there that can't be changed. It's just, as Mache was suggesting, it's a time to get students started thinking and informed about their options.

[05:19:47] We also, in 2016, I believe, added the requirement of the Middle School Career Investigations course, again, helping provide students and families more information, more options, And having them start thinking about a pathway, but you can change it 15 times during high school if you choose.

[05:20:05] Nothing in that plan binds anybody to any particular course plan or track of any sort. So thank you for helping raise that. But anything we can do to help clarify that in this document, and again, I haven't read the, I didn't realize there was a revised draft since the one last week, but clarifying that career plan is signed and put into place but not binding in the sense that it can be changed throughout high school, that might well be worth clarifying.

[05:20:36] Thank you for your questions. I think it's going to take additional work with resource partners as well. I think obviously the group has done a wonderful job of getting to this point. But when we say on one hand that if I grade students are failing and it's almost it's difficult to reverse that if there's been a pattern in that then we just got to get real clear in the middle grade exactly what the expectations are exactly where we're

[05:21:10] going to put the resources both financial as well as external partners that can help us look at the other career paths that may have to be taken in light of what we see as our success and or failure rate because I think it can't just be so loose at eighth grade that at the end of this we start making a whole bunch of changes because the likelihood of success after that begins to lessen the longer it goes forward but at any rate again I just think it's going to take some external community resources a lot of our post-secondary education schools are going to have

[05:21:48] to step up, as well as the governor's put money in the budget for funding the shortfall where we need those resources, and I think we've got a lot of work to do to get there. But kudos to the staff for where we are, but I think that's the direction we're headed to support with.

[05:22:08] Thank you. Any other comments? Well, Dr. Armstrong, thank you so much, and we'll accept this item for first review and see you back in October. All right. Our last item on the agenda is to receive a presentation on the Special Education Advisory Committee Annual Report, and Mr. Wheeling for joining us today, and also Dr. Hollins.

[05:22:37] Dan, do you want to kick it off? Okay. Well, thank you for having me this afternoon. This is a report for the State Special Education Advisory Committee. The purpose of the State Special Education Advisory Committee is to promote the educational children with disabilities by providing advice and policy guidance based on input from citizens and constituent groups the state sea act is organized and functions in accordance with state and federal requirements it represents various stakeholder groups as prescribed by the individual individuals disabilities education act idea the administrative year runs from july 1 to june 30th we have four subcommittees policy regulation family engagement community outreach student achievement student

[05:23:15] outcomes and our executive committee for nominations we meet four times a year we took time, obviously, this year for public comment and constituent report themes. I'm sorry, there you go. It's just a slide you got. We looked at some of the report themes we saw were perceived bias, the due process against parents and hearing officers, the individualized education program, the IEP implementation of procedural safeguards, lack of progress monitoring and measurable goals, the ongoing concern about teacher recruitment retention, as well as staff shortages and compensation, the mental health stress fatigue of students staff and parents and the lack of mental health

[05:23:54] wraparound services for the social emotional needs of our students but a number of presentations from the top we had a number of presentations throughout the year the topics included the annual planned review for vbsdb the annual report on dispute resolution our ombuds report on community constituency issues a foyer presentation post-secondary access and success specialist a virginia iep update teacher recruitment and retention update secondary transition partnerships at work, an exceptional family member program, EFMP for military families, Senator for Family

[05:24:30] Involvement Family Navigators, the state SEAC review from Hank Millward and Dr. Chiquita Severn, and of course we had regular updates from the state of the state from Dr. Hollins versus the superintendent of special populations. Accommodations that we thought that were notable included turning the tide recruitment program that used all modes of media and recruiting nationwide, standards-based IEP technical assistance, the updated eligibility determination documents and family-friendly resources to support. The recent JLARC study provided insight in special education funding, the release of the new VAPE decision-making tool, and the continued

[05:25:06] unwavering support of the General Department of Education staff. Our recommendations included funding teacher pay and licensure. We believe consideration to be given to funding special education based on student needs as opposed to the utilization of the standards of quality formula.

[05:25:23] As additional positions and requirements are mandated by the General Assembly, we recommend they be fully funded through the state funding formula. We are in full support of additional funding to support our students who receive public education services, and we recommend the barriers preventing high school graduates from pursuing the teaching profession be examined.

[05:25:39] We also recommend it for student family support that the SEAC request that VDOE provide an annual summary by issue of final due process complaints in order to further assist SEAC in performing its

statutory required duty of identifying trends in the issues being raised by parents of students with disabilities in the Commonwealth. We support ongoing training for families by VDOE to help them understand the VAAP decision making tool and would like to see online training materials available to local CX and other parent groups. The state CX also recommends that VDOE ensure that if a locality uses the Virginia IEP and it has optional add-ons that those comply

[05:26:15] with IDEA parent participation requirements specifically. We recommend that districts have the ability to allow the IEP team to prove that there is a need for read aloud on the reading test based on the specific need of the student. We recommend growth assessments are great and and allow students to be accredited based on growth, based on the positive data, we recommend this be expanded to high schools.

[05:26:36] We also recommend that the writing SOL requirement for graduation be more individualized, allowing the IEP team to choose an alternative assessment that best supports that student. We're constantly pushing social-emotional learning because students should not have to fail repeatedly before they become successful.

[05:26:52] And we would certainly like to thank you all for all your special ed students, certainly for Vice President Hanson and the board, And obviously, Dr. Koons and Dr. Hollins are all with their continued ongoing support of our programs. Thank you. Any questions? I have a question in terms of what is next with this report?

[05:27:12] How is this taken out to help the districts or to be implemented with the recommendations? Yeah, same address that one. Thanks so much, Michael. Mr. Hansen, this report is provided first to the board as a product of your advisory committee.

[05:27:30] However, after that, it is publicly posted and available. I'm on the VDOE website and the SEAC is actually meeting today and tomorrow as well and they're already hard at work on updating this information for you based on the school year the barriers to high school graduates from pursuing teaching there was something mentioned about barriers to the high school graduates it was a bullet on one of the slides I was just curious what that was exactly yes doctor I'll let Michael weigh in as well but part of the robust conversation

[05:28:10] that the SEAC has had over the last year around recruitment and retention has obviously been focused on developing the pipeline from our current k-12 students and to developing an interest in educator preparation and so while there are some marked great examples of pilot programs some right within the greater Richmond area definitely thinking about how we could continue to incentivize and fund those programs at the high school level to help individuals who are interested in educator prep have the time within their schedule to a lot for experiences and they will just you know some of the conversation we just had about job shadowing and being exposed to the career just looking at how we can

[05:28:45] continue to support and expand those opportunities there's such a there's such a shortage special education teachers and people because it's such a stressful situation try to find ways to really incentivize that for folks to get more folks that are in the pipeline to be prepared to become special ed teachers or teachers in general okay I just wouldn't secure sure what the barrier was but the barriers simply that the opportunities aren't there for them to find out about that yes yeah recently we talked about the six million dollar safe grant that we received one of three states in the country one of the components of that grant is really developing a pre-apprenticeship program

[05:29:24] which is our teachers for tomorrow in high school so that that leans into some of the work that the SEAC is focusing on thank you well first thank you mr. is it Mr. Willen is that yes you the work you all have done and recognizing that your entire committee is volunteers and you put a lot of time in I appreciate all the reports and really the very detailed recommendations you've given us and so I thank you all for your hard work in this very very tough area we're not where we want to be absolutely in the Commonwealth on on making provision for

[05:30:02] our students with special needs and I particularly appreciate your focus on on what are we gonna do to attract and retain great teachers in the special ed world. I do think that all of our other problems will not be solved until we can do a better job on the teacher workforce.

[05:30:23] And frankly, not just special ed teachers. There were provisions in the General Assembly this year. I know you're aware about educating general ed teachers better with respect to special ed law, and hopefully that will help too. My question actually maybe goes, but so my thank you is to you.

[05:30:38] My question, I guess, more to Dr. Hollins, but of these recommendations, and this is sort of following up on Mr. Hansen's comment, I think, there's a bunch of recommendations in here. What happens, you know, does anybody take any action on them?

[05:30:56] And in particular, can we ask the department to bring back to us any of these recommendations that would require board implementation for action so that we can consider what, if anything, we should do on them. Some of them, I mean, I see, for instance, one that recommending that the department consider providing an annual summary by issue of filed due process complaints.

[05:31:19] That, to me, seems like something we as a board could ask for. And then some of these others are, you know, pay issues for the most part. Unfortunately, we don't have the budgetary authority, though there may be things we can do in our SOQ recommendations, et cetera.

[05:31:36] But so what of these recommendations, how do we take the ones of these recommendations that the board could be helpful on and translate that into the board consideration of concrete actions? Thank you for the question, Ms. Holton. Many of these recommendations are already under the purview of the department.

[05:31:54] As you mentioned, this first one, looking at student and family support, asks us to disaggregate the data from our due processes differently. Now, as I'm sure you all are familiar with, it's federally required that we post the outcomes of those processes because they are already on our website, actually grouped by topic.

[05:32:09] However, those are only decisions that are adjudicated, in other words, decided upon by a hearing officer. This recommendation really speaks to increasing the richness of that data to understand a little bit more about any of those concerns that come. Obviously, that's something that we're very intent upon. However, staffing and support, particularly within the Office of Dispute Resolution, has been a challenge for us given the increasing number of complaints that we are required to adjudicate along federal timelines.

[05:32:34] So that's a great example that it's something that Dr. Coons has been very supportive of increasing the staffing for those offices. One other thing I'll point to is the last one on this list, and that is looking at accessibility for parents with the Virginia IEP or the state-sponsored IEP solution.

[05:32:50] I will say that the department and the leadership, both under the purview of the governor and the secretary of education, are actively seeking additional resources to support more widespread use and accessibility of some of the specialty modules right now. is no state funding to support the Virginia IEP process it's all right now special ed funded as a portion of our state set aside and so actively seeking additional resources to support many of these things is important you noted that some of these recommendations are more attuned to localities however that's incredibly important when you appoint members to SEAC they represent regions as parents of students with disabilities themselves and so this is a useful tool and then helping them to commit to communicate with their constituents and

[05:33:29] and carry that information back but what I hope I convey is that the department is actively working on implementing these recommendations and taking advice from the SEAC in order to make changes to our policy and practice and every year we gain ground on those and continue to advocate when and where we need more support and resources. Mr. Hanson, may I follow up? I appreciate and part of your answer is you all are already acting on a number of these suggestions and I appreciate that. I guess I'm particularly interested in what more could we as a board do and would love to have you all come back with are all any of these recommendations one we could act on so for

[05:34:05] instance the one you all are compiling data and publishing it in one format but that's not coming to us unless we go look on the website so having us know what are the most typical kinds of complaints might give us a way to think about are there structural things we can do to help reduce those complaints so that's just by way of example is that something a useful further conversation. Another useful further conversation might be just really to help us understand what exactly is the board's authority. And I will say, I'm not sure I understand. You know, there was a suggestion during the public comment this morning that we, the board, have the authority and

[05:34:45] responsibility to ensure that faith is, that a free and appropriate public education is made. And there was a citation to 22.1-214. And where we hear, and I'm not presuming that I know the facts, but where we hear facts suggesting that a hearing officer and even a court has said that a certain child should be enrolled in private school and that two years later that's not happened, do we as a board, and again, I'm not asking you to comment on anything in litigation or otherwise a specific case, but what is our board's authority vis-a-vis local boards on these due process cases?

[05:35:23] And I want to chime in with Ms. Houghton as well as it relates to that because it appears The statute obviously does make it our responsibility to take some action if we believe that there is something that is occurring in the field of special education that is not being implemented properly or that goes specifically against a statutory requirement.

[05:35:47] And I don't know if in the past some of those issues have been redirected to the board for the board to make a statement or for the board to issue a direction.

[05:35:55] And that's obviously something we may need to take up as an off session, not necessarily here, but at this point we're interested in specifically those types of things that as a board we can do to further support the special education needs of our students and where there may be situations that we don't believe are consistent with that position that we take the appropriate action.

[05:36:27] So I appreciate that feedback. I think what I would offer is that there are very clear regulatory authorities of both the board and the department when it comes to special ed, and we look forward to supporting, furthering the understanding of board members on any of those topics.

[05:36:45] All right. I just think that's a, we can have a session, a work session related to that. We'll make that recommendation to staff. um yes so um i appreciate i i also have the same questions these are all like really um comprehensive recommendations some of the things i already see that we are moving on and there's some things that are within our purview and there's some things that require greater collaboration communication um and as a former special ed teacher like the the answer is we need more awesome teachers who have more training, who have more support, who have more

[05:37:25] resources to be able to serve our most vulnerable students. And I think the concern I have always about special education is it's this department's problem. And it is all of our problems in terms of how do we solve this? It means we have to raise the standards. We have to look at reading we have to look at accountability it is everyone coming together to make sure we're serving our most vulnerable students and i guess the the real question i have is where is like we've got

[05:38:02] to get more people who want to be special ed teachers to understand the nuance the law the accountability but how do we make sure all teachers have the training this and it's not just oh the special ed teachers and maybe it's a communication maybe it's a training but i i always feel very personal that it's like we look to the special ed team to solve these problems and it is all of our collective so we actually had legislation passed by delegate coiner um senate bill in partnership

[05:38:39] with senator favola and part of that is general education teacher training part of that is revamping iep so um as member mcpherson talked about what are the roles of the board what are the roles of the department there is also pieces of legislate legislation that are being put in place that um dr hollins and i and an advisory group are working towards as well so i think that might be a great way for us to continue to update the board on some of those legislative pieces that are asking for changes as well that's great thank you well thank you very much and the board accepts this presentation

[05:39:18] and the report, and I appreciate the time and dedication of the advisory committee members and Dr. Holland. Thank you. While we are close to being done, I just wanted to turn the time over to Dr. Coons to get an update from her.

[05:39:38] Well, first, as you can see, we're in another room in the Library of Virginia. They continue to do Herculean efforts to support us and give us a home as the board, and sometimes because we made the transition mid-year they are already booked in some places and this is not typically a room that they use for a public event like this so we are incredibly grateful for their ongoing support their wonderful resources and their partnership and ongoing support of everything we do as we have done Herculean work with all the technology and our technology team who continue to make amazing things happen in a variety of corners and spaces

[05:40:17] across Richmond so first of all I want to thank the library of Virginia and thank our tech team as many of you have noticed we have incorporated arts every single month to the board because we want to feature our students and feature our students creative outlets a lot of times we spend a lot of time talking about academics and other things but really want to honor the arts and honor our students commitment to the arts so I appreciate the board being so invested in our our monthly arts performances and opportunities i do want to give a huge shout out to several blue ribbon schools that were announced this week we have four schools that have been announced for

[05:40:56] exemplary high performing that includes spring hill elementary school in fairfax county public schools green run collegiate in virginia beach city public schools bethel manor elementary school and

york county public schools and saint andrew the apostle school and the arlington diocese we have exemplary achievement gap closing schools including central academy middle school in bottom county public schools gate city middle school in scott county public schools t clay wood

[05:41:32] elementary school in prince william county schools and saltville elementary school which i had the wonderful opportunity of visiting last year in smith county public schools so i'm going to give a huge shout out to our schools who continue to do exemplary work and exemplary gap closure and have been recognized nationally i do want to give an update on several different things as we talked about cell phone free education and the work that was happening last month our guidance is final we have had multiple opportunities to talk with teachers talk with educators talk with family

[05:42:08] members but Mr. Todd Reed and I had the opportunity to be in Osborne High School in Prince William or in Manasseh City earlier this week and we heard some really powerful stories from some high school students and the benefits and the amount of learning that's happening and while they wouldn't advocate for cell phone free they were incredibly grateful for cell phone free we had one young lady said that she had stopped gotten rid of all of our social media because it it was an impetus for her to make that change.

[05:42:40] We had another young lady, she was a multi-sport athlete, talk about how important it was to help our middle school students understand that social media wasn't reality. So I'm just incredibly grateful of the partnership of families, communities, and really focusing on the health of our young people and the ability to learn.

[05:42:57] And it's just a testament to where everyone comes together. Many of you and many of our schools participated in the Jonathan Haidt Fireside Chat with the First Lady, and we're incredibly grateful for the First Lady and her leadership.

[05:43:12] But that has been recorded. There is a facilitator's guide, so really encourage us all to communicate that with our constituents, that that is available for additional family nights. We also have a grant for schools to host family nights and have these conversations with families, hire consultants to work with our families, to make sure our families are aware of some of the dangers that are happening with cell phones.

[05:43:36] and I had the opportunity to talk with elementary school principals yesterday about a lot of times we talk about all of the dangers that will happen. Elementary is the opportunity to talk about all the dangers that could happen, and that's a decision a lot of families make, so it's important for us to engage those families early on.

[05:43:54] We received a $30 million comprehensive state literacy development grant over the past week or two. That grant, huge shout out to Em and her team who worked very hard to complete a very rigorous grant application, will be dedicated as a literacy support network that is really focused.

[05:44:16] We talked a lot about our students with disabilities today. Part of that work will dedicate to our school divisions who are really working to make sure that inclusionary practices and early literacy are top notch, high quality and evidence based, as well as our English learners. So we're really excited to have that influx funds that will go directly to our schools and supporting them and improving their literacy instruction last but not least our team has done a lot of work and a lot of work and a lot of work and you've seen a lot of work around the school performance and support framework you've seen the

[05:44:50] work around cell phone free but in addition we have elevated school safety and i want to thank the team for really thinking differently about school safety and elevating that to the cabinet level at the department because we have never seen kind of the stress and the tension that our school superintendents are managing right now and we want to make sure that we are providing communications resources supports and elevating anything that's happening over to our homeland safety and teams so that we can make sure we're wrapping around our schools and making sure school

[05:45:28] safety is important so I want to thank all of our team for their hard work but especially those in our team for really elevating school safety and supporting our school divisions right now so thank you very much thank you Dr. Coons and just I'd also like to thank the board for their engagement and also just really with Ms. McPherson Dr. Bryce I know you guys are both the two newcomers but really just appreciate the value that you bring to our conversations and our body of work here and just your perspective and so just haven't been

[05:46:03] able to publicly thank both of you since you joined us so it also opened it up if there's any topics or things that would be helpful for us to be putting on the table for upcoming meetings or other considerations that you might have on your mind Mr. Hanson I've got three items and I'll be quick one is that there was a public comment this morning a teacher and also working I think in the higher ed system asking questions about Val's test questions that she could use

[05:46:40] in teaching future teachers and I don't need a response here or publicly necessarily at all but I'm hoping somebody can get back with that teacher even if we can't meet her direct request can we help solve her need in some other fashion so I just raise that one up for your consideration and that that's what the VLP, so that's the UVA oversight. Emma's working with them to try and figure that out.

[05:47:05] Excellent. Thank you. The second item, it's come to my attention since we discussed, after our discussions about English language learners in the accountability framework, that many other states address the testing of English language learners differently in one significant respect, and that is that I'm told that the vast majority of states, 30-some plus, offer at least some of the tests in the students' native languages as an option.

[05:47:42] I don't know, Mache, what you all do in D.C., but some in 30-plus states offer either science or math tests and or, well, offer various content area tests in Spanish and or Arabic depending on the most frequently likely alternative languages.

[05:48:07] And particularly in science and math, I think that that would be a wonderful thing to consider. I'm very happy to see that the department's current RFI, Request for Information that's out about our assessment system, included requests for information about native language testing as a cost option there.

[05:48:29] And as we are thinking about how we help our ELL learners learn both their English but also their science and math at the student's option, now obviously it doesn't help all of our students because some are not fluent in -- are not literate in their native language.

[05:48:51] But I would like to encourage us to look more into that and hear more as we make revisions to our assessment system. And my particular ask on that would be that at some point we get some feedback on the responses to the RFI.

[05:49:08] The RFI also asks for a lot of information about growth assessments, et cetera. And it would, I think, be very helpful for the board to have an opportunity to be part of that discussion as we go forward.

And I have one more item, but I see Dr. Koons. Yep. So we have a responsibility to report to the governor and the legislature.

[05:49:27] We'd be happy to bring that report next month on the RFI. currently we have no responses whatsoever thank you hopefully they'll all come rushing in at the end of the comment the response period and my third item is just wanted to express concern and raise questions about the implementation we're now into the implementation phase of the accountability the new accountability framework and i'm particularly distressed that We've lost Katie Carroll, who'd been here, I think, almost a year and was overseeing that.

[05:50:05] And Dr. Koontz has assured me she's got other folks in place. But I just feel like for the sake of the divisions, having robust efforts at implementation is extremely important when we're asking them to do so much in so many areas simultaneously this academic year and to lose our leadership on that, who herself replaced somebody.

[05:50:29] You know, we've just had so much turnover in that position that it really worries me from the perspective of the divisions getting the support they need. And in particular, it's my understanding we were told at, I don't remember whether this was the July or the August meeting, that the divisions would be being supplied with modeling information showing how each of their schools would do under the new standards based on last year's data and that that would be provided by the end of September.

[05:50:56] And I've talked to a number of division reps recently, and they ain't got it. Ms. Holton, that is not correct. They were told they would get the accreditation results by September 30th, and those are scheduled to go out September 30th. We have actually met with the superintendent, seven of eight regions.

[05:51:14] And my team, as you demonstrated some kind of concern, has had robust conversations. They actually met with Region 4 for the second time this morning. dave andy and mark are working diligently to be responsive and bring data to them and have individualized sessions in their region with their own data and are scheduling another round of those next month so our school divisions are getting extensive support in that model the next round of modeling will be coming out but we have been focusing on making sure the accreditation system which is our current system meets the timeline and guidance so they will be getting that on monday and then we will turn back to make sure they get additional data on the new system

[05:51:53] moving forward however our teams have met with seven of the eight regions in hour-long sessions to start supporting them in that transition so I appreciate your concern but we are getting multiple sounds of feedback including from VAS about the level of support we're providing and I appreciate that if I may just respond briefly and then this is my last comment I promised Mr. Henson but I appreciate the department's efforts and certainly the current year's accreditation standards is a time-sensitive matter and needs to come first but what I heard in the previous meeting is that school

[05:52:28] divisions would be privately provided with detailed information on how each of their schools would do under the new system based on last year's title privately model that modeled data was what we were told and I would think that would be extremely important and that the division would want to and that that would be provided by the end of September was the language I heard I may have misheard it but that that would be extremely important because I as a superintendent would want to know which of my schools is unless something changes this school year gonna be rated off track and/or needs intensive support versus and even the ones on track that are striving to be distinguished and so

[05:53:07] getting that information to the school divisions in timely fashion to me would seem to be a very important priority and it has not happened yet I have talked to superintendents and their staffs who have been in those regional meetings and that is not what they have gotten at those regional meetings they've gotten they've been shown a model for elementary schools only but they haven't been given the data such that they could run they haven't either been given the results for each of their schools or given the data that they would need to be able to produce the results for each of those schools so I appreciate the effort being made in those regional meetings but it is not what we were told the divisions would be given?

[05:53:45] Ms. Holton, I am happy to clarify again that we will be sending that information. We never said we would send that information by September 30th. We are working to help divisions work through the modeling to make sure they're prepared to understand that. So thank you for your feedback, and I apologize for not clarifying.

[05:54:02] We at no time said they would have their data by September 30th. We told everyone that their end of year accreditation results would be September 30th, but we are working to make sure all divisions are prepared for their data as you requested we are absolutely sending that data we are working with our superintendents to make sure that they are ready I've had my team work with specific school divisions with their actual data this week so happy to take that individualized report from that school division that has concerns and follow up with them independently Dr. Coombs's suggestion especially for me as I'm new and I don't know if it's

[05:54:39] helpful to the board and I know it's more work but might it um be taken under consideration if we get a little report you know like a timeline sheet in terms of your rollout so that we can just follow in in case that we individually get questions or yeah we're more than happy we'll keep you updated in those weekly emails but we can get a timeline for you okay happy to do that thank you okay thanks I just want to um call attention I know Dr. Coons has sent it around to the board but our very esteemed consultant Chad Alderman did a pretty

[05:55:19] interesting analysis recently where he looked at across the country reading proficiency rates at third grade and he was looking at you know proficiency levels based on the poverty levels of some of the districts and then comparing it to the actual third grade reading scores and he was basically trying to surface a number of what we call beat the odds beating the odds districts and and we had six beating the odds districts in the commonwealth and i have already requested that dr coons at some point get some of these folks in here to talk to us about what they're doing because if you look at the scatter plot here you see these six glorious yellow dots

[05:55:58] and when you attack when you click on those yellow dots and see what they're doing to beat the odds that's that's what we want to know more about but the six yellow dots are west point public schools taswell county public schools wise county public schools colonial beach public schools dickinson county public schools and lee county public schools so i just want to give a shout out to those six districts really excited to learn about what those six districts are doing because they're doing something great and we often talk about you know learning loss and how hard we're really scraping to get our kids back up to where they need to be but we've got some districts that are already doing it.

[05:56:38] And so I just want to remind us of that today and look forward to hearing from those districts at some point. Thank you, Dr. Northern. Anything else? Well, hearing none, we will adjourn this meeting until we meet again in October.

[05:56:55] Thank you. Is there a motion to adjourn? Is there a motion to adjourn? So moved. Second. All in favor? Aye. Aye. Debra? Bye, everyone.

[05:57:11] Bye-bye, Debbie. Thank you. Bye, Debbie.

